

بِسْمِ اللَّهِ الرَّحْمَنِ الرَّحِيمِ

Darul Uloom Wal Funoon

Masā'il al-Ḥajj

Hajj, Qurbānī & Nikāḥ — Class Notes

Compiled class notes · Ḥanafī fiqh of Hajj

TEACHER

Mufti Umar Aejaaz

COMPILED BY

Arif Shaikh

First edition · 2026 (ongoing)

Copyright & notice

These notes are prepared for students of **Darul Uloom Wal Funoon** following the Masā'il al-Ḥajj series with **Mufti Umar Aejaaz**. They are study material, not a formal fatwa unless endorsed by the institution.

Disclaimer. Content reflects live class instruction in the Ḥanafī madhhab. Consult qualified scholars for legal rulings.

Reference text. The principal Hanafi reference for this series is **Badā'i' al-Ṣanā'i' fī Tartīb al-Sharā'i'** (Volume 3 (al-I'tikāf — al-Nikāḥ)), by Imam 'Alā' al-Dīn Abū Bakr ibn Mas'ūd al-Kāsānī (d. 587 AH).

Ongoing edition. New sessions will be added as classes continue.

© 2026 · Arif Shaikh

Muqaddimah — Introduction

How to use this volume

These notes form an **ongoing compendium** of the Masā'il al-Ḥajj lessons at **Darul Uloom Wal Funoon**, taught by **Mufti Umar Aejaaz**, compiled by **Arif Shaikh**.

The series explains **when Hajj becomes farḍ** upon a person: conditions of taklīf, then **istiṭā'ah** (capability)—provisions, transport, safety of travel, and rules for women—followed by the **arkān** (pillars) and **wājibāt** (obligatory actions) of Hajj.

How to use this book

1. Read each **session** in order; later lessons build on earlier ones.
2. Arabic terms appear as taught; difficult words are explained in brackets in the session notes.
3. Verify Quranic and hadith references in standard editions.
4. Download the latest PDF from the repository as new classes are added.

Principal reference

بَدَائِعُ الصَّنَائِعِ فِي تَرْتِيبِ الشَّرَائِعِ
Volume 3 (al-I'tikāf — al-Nikāḥ)

الإمام علاء الدين أبو بكر بن مسعود الكاساني
Imam 'Alā' al-Dīn Abū Bakr ibn Mas'ūd al-Kāsānī (d. 587 AH)

Badā'i' al-Ṣanā'i' fī Tartīb al-Sharā'i' (Volume 3 (al-I'tikāf — al-Nikāḥ)) by Imam 'Alā' al-Dīn Abū Bakr ibn Mas'ūd al-Kāsānī (d. 587 AH) is the classical Hanafi reference used alongside oral teaching. This student book **documents the lessons**; it does not reproduce the full text of that work.

Method

- **Madhhab:** Ḥanafī, as taught by Mufti Umar Aejaaz.
- **Format:** Opinions, evidence, cases, and Q&A from class.
- **Preferred view:** Marked when the teacher gives the mashhūr Hanafi position.

Table of Contents

How to use this book	3
Principal reference	3
Method	3
Masail e Hajj – Class 1 Summary	1
Overview	1
The Four Conditions	1
1. Bulugh (Reaching Puberty)	1
2. Aql (Sound Mind)	1
3. Islam	1
4. Freedom (Not Being a Slave)	1
Follow-Up Cases: What If a Condition Is Gained Mid-Hajj?	2
Child Who Reaches Puberty During Hajj	2
For It to Count as Obligatory (Hanafi view)	3
Q&A at the End: Why Is Ramadan Fasting Different?	3
Closing	3
Masail e Hajj – Class 2 Summary	4
Background	4
Two scholarly opinions	4
Opinion 1 – Imam Abu Hanifa	4
Opinion 2 – The Sahibain (Imam Abu Yusuf and Imam Muhammad) – preferred opinion ...	4
The Hadith argument (Zaad and Rahila)	4
Two cases of blindness – detailed ruling	5
Case 1: Blind before Hajj became obligatory on him	5
Case 2: Became blind after Hajj was already obligatory on him (i.e. he delayed Hajj while healthy)	5
Question raised by a student	5
Next class	5
Masail e Hajj – Class 3 Summary	6
Introduction	6
Two Key Terms	6
Central Question: Is Ownership Required?	6
Opinions of the Four Imams	6
Imam Abu Hanifa and the Hanafi Majority	6
Imam Shafi'i (رحمه الله)	6
Imam Malik (رحمه الله)	7
What Happens if Someone Gifts You a Hajj Ticket?	7
How Much Does One Need? – The Criteria of Zad & Rahila	7
How Long Must Family Expenses Be Arranged?	8
Special Cases Discussed	8
Case 1 – Shared Transport	8

Case 2 – Extra House Not in Use	8
Case 3 – Expensive House Being Used	8
Case 4 – Person with Savings but No House or Servant	8
Case 5 – Food for the Family	9
Conclusion of This Section	9
Masail e Hajj – Class 4 Summary	10
Introduction	10
Part 1 – Amn al-Tariq (Safety of Travel)	10
Central question	10
Opinion 1 – Not preferred: safety is a condition for <i>performance</i> , not for <i>obligation</i>	10
Opinion 2 – Preferred (Hanafi): safety is a condition for <i>obligation</i> itself	11
Comparison: Zad, Rahila, and Amn	12
Case – Rich, capable, but never had safe travel; now dying	12
Part 2 – Conditions Specific to Women	12
Part 2A – Mahram: Hanafi vs Imam Shafi'i	12
Hanafi position (preferred in this class)	12
Imam Shafi'i's position (mentioned for contrast – not Hanafi fatwa)	13
Part 2B – Mahram Must Be Ready and Financially Covered	14
Scenarios	14
Two opinions – must she arrange mahram's costs if she is rich enough?	15
Part 2C – Husband's Permission	15
Part 2D – What Counts as Mahram?	15
Part 2E – Second Condition (Preview)	16
Q&A from Class	16
Q1 – If I get wealth only shortly before Hajj (e.g. one month before Dhul Hijjah), when does Hajj become Farz?	16
Q2 – Hajj became Farz; then I lost the money and never got it again. Is Hajj still Farz? . . .	16
Q3 – Today women travel in groups for 'Umrah/Hajj; visas are issued without mahram. How do we convey the Hanafi ruling?	17
Summary Table – When Is Hajj Farz on a Woman? (Hanafi)	17
Closing	17
Key Arabic Terms (Quick Reference)	18
Masail e Hajj – Class 5 Summary	19
Introduction	19
Second Condition Specific to Women: Absence of 'Iddah	19
Scenarios: Talaq or Husband's Death During the Hajj Journey	19
Talaq al-Raj'i (Revocable Divorce)	20
Talaq al-Ba'in / Death of Husband (Relationship Ended)	20
Case 1: Her Home is Closer (Less than Mafat al-Safar)	20
Case 2: Makkah is Closer (Less than Mafat al-Safar)	20
Case 3: Both Home and Makkah are Within 48 Miles	20
Case 4: Both Home and Makkah are Farther than 48 Miles (The Debated Case)	20
Note on 'Iddah Commencement	21
Hajj Badal (حَجٌّ بَدَل) – Proxy Hajj	21
Definition and Obligation	21
If the Person Performs Hajj Themselves Despite the Barrier	21
Recovery After Hajj Badal	22
Analogy: The Poor Person Who Performs Hajj	22
Financial Capability and the Hajj Season	22

Two Scenarios	22
Immediate (Fawri) vs. Delayed (Tawsi') Obligation	23
Q&A from Students	23
Closing / Next Class	23
Masail e Hajj — Class 6 Summary	25
Introduction	25
Point 1 — The Dalil (Evidence) for the Farḍiyyah of Wuqūf Arafah	25
Ḥadīth 1	25
The Nature of “Completion” (Tamām) Here	25
Ḥadīth 2 / Āyah of Quran	26
Background	26
Dalīl 3 — Ijmā' (Consensus)	26
Point 2 — The Place of Wuqūf	26
Exception: Baṭn 'Uranah (بَطْنُ عُرْنَةَ)	26
Point 3 — The Time of Wuqūf	26
Evidence for the Beginning	27
Evidence for the End	27
Difference of Opinion: Day vs. Night	27
Imām Mālik's Dalīl	27
Ḥanafī Response	27
Additional Reasoning	28
Responding to Imām Mālik's Ḥadīth	28
Point 4 — Case of Mistaken Dates	28
Case: Wuqūf Performed on the 10th (Thinking it was the 9th)	28
Why the Testimony is Not Accepted to Invalidate	28
Case: Wuqūf Performed on the 8th (Thinking it was the 9th)	28
Closing / Next Class	29
Masail e Hajj — Class 7 Summary	30
Introduction	30
Continuation — Mistaken Dates: The Analogy of Qiblah	30
Witness Testimony — Detailed Scenarios	30
Scenario 1: Witnesses Appear After the Wuqūf is Complete	30
Scenario 2: Witnesses Appear Before Zawāl on the Day of Wuqūf	30
Scenario 3: What About the Witnesses Themselves?	31
Scenario 4: Imām Rejects Testimony, but Some People Follow It	31
Point 5 — Duration of Stay at Arafah	32
The Farḍ (Minimum) Duration	32
The Wājib Duration	32
Contrast with the Shāfi'ī School	32
Excursus: Classification of Ḥadīth (Uṣūlī vs. Muḥaddithīn)	32
Division According to the Muḥaddithīn (Ḥadīth Scholars)	33
Division According to the Uṣūliyyīn (Ḥanafī Legal Theorists)	33
Point 6 — Departing Arafah Before Sunset (Ghurūb)	33
Departing Before Ghurūb but Still Within Arafah	33
Departing Before Ghurūb and Leaving Arafah Entirely	33
How Can the Dam Be Dropped?	33
Returning After Ghurūb	34
Missing the Wuqūf Entirely	34
Bonus Q&A: Days of Uḍḥiyah (Qurbānī) — Three or Four Days?	34

Ḥanafī Position (Majority): Three Days	34
Shāfi‘ī Position: Four Days	35
Closing / Next Class	36
Masail e Hajj — Class 8 Summary	37
Introduction	37
Faḍā’il: Virtues of the First Ten Days of Dhul Ḥijjah	37
Recommended: Not Cutting Nails and Hair	37
Takbīr al-Tashrīq	38
Sunan of Eid Day	38
Eid Prayer — Key Rulings	38
Qurbānī (Uḍḥiyah) — Status and Virtues	38
Ruling — Wājib or Sunnah?	39
Upon Whom is Qurbānī Obligatory?	39
Basic Criteria	39
Specific Criteria for Qurbānī	39
Two Key Differences from Zakāt Niṣāb	39
Women and Qurbānī	39
One Qurbānī per Person, Not per Family	40
Debt and Niṣāb	40
No Qurbānī on Minors or Insane Persons	40
Poor Person Who Buys an Animal	40
Days and Timing of Qurbānī	40
Three Days	40
In Cities (Where Eid Prayer is Performed)	40
In Small Villages (No Eid Prayer)	40
Sending Qurbānī Abroad	41
Charity Cannot Replace Qurbānī	41
Animals for Qurbānī	41
Partnerships in Larger Animals — Critical Rulings	41
All Partners Must Intend ‘Ibādah	41
The Ḥarām Income Problem	41
Closing / Next Class	42
Mishkāt al-Maṣābīḥ — Kitāb al-Nikāḥ, Class 1	43
Introduction	43
Ḥadīth 1: Four Qualities of a Good Wife	43
The Path to Jannah for a Woman	43
Note on Physical Beauty	43
Ḥadīth 2: Marriage is Half of Dīn	43
Why is Nikāḥ “Half of Īmān”?	44
Comparison with Other Religious Traditions	44
Ḥadīth 3: The Greatest Barakah in Nikāḥ is Simplicity	44
Teaching: Keep Nikāḥ Simple	44
Q&A: Should We Invite Everyone?	45
Q&A: Children’s Desires for Grand Weddings	45
Ḥadīth 4: Looking at the Prospective Spouse	45
Ruling	45
The Ḥadīth	45
Practical Process	45
What May Be Seen	45

Additional Points	45
Ḥadīth 5: A Woman Must Not Describe Another Woman to Her Husband	46
Closing	46
Masail e Qurbānī — Class 2 Summary	47
Introduction	47
Sharing a Larger Animal — Intention at Time of Purchase	47
Best Practice	47
Purchasing Alone, Then Wanting to Share Later	47
Age Requirements for Animals	47
Mixed Intentions Among Partners	48
Castrated Animal (Khāṣī)	48
Goat Alone vs. One Share in a Larger Animal	48
Disqualifying Defects (ʿUyūb) — Three Core Principles	48
Applying the Principles — Specific Cases	49
Defect Appears After Purchase	49
Lost Animal Scenarios	50
Ghanī Loses the Animal	50
Faqīr Loses the Animal	50
Masnūn Method of Slaughter	50
Who Should Slaughter	50
What to Say	50
Ādāb (Etiquettes) of Slaughter	50
Baby Born from the Qurbānī Animal	51
One Partner Passes Away	51
Distribution of Meat	51
General Rule	51
Dividing Meat Among Partners (Ribā Concern)	51
Commercial Use is Prohibited	51
Rulings on the Skin	52
Miscellaneous Rulings	52
Substituting Qurbānī with Other Animals	52
Closing	52

بِسْمِ اللَّهِ الرَّحْمَنِ الرَّحِيمِ

List of Sessions

Editions will grow as classes continue

№	Session	Date
1	Conditions that make Hajj obligatory	11 May 2026
2	Physical capability — the blind person	12 May 2026
3	Zād and Rāhilah — expenses & transport	13 May 2026
4	Amn al-ṭarīq & women — maḥram rules	18 May 2026
5	‘Iddah travel restrictions & Hajj Badal	19 May 2026
6	Wuqūf Arafah — obligation, place, timing & mistaken dates	21 May 2026
7	Wuqūf Arafah — duration, departure, missing & Uḍḥiyah Q&A	22 May 2026
8	Aḥkām e Eid al-Aḍḥā & Qurbānī (Part 1)	23 May 2026
9	Mishkāṭ: Kitāb al-Nikāḥ — qualities & blessings of marriage	24 May 2026
10	Masā’il e Qurbānī (Part 2) — defects, method & distribution	24 May 2026

Masail e Hajj — Class 1 Summary

DATE May 11, 2026

TOPIC Conditions that make Hajj obligatory

Overview

This is a Fiqh (Islamic law) class discussing the conditions required for Hajj to become obligatory (Farz) upon a person. The teacher explains each condition with Quranic evidence, Hadith, and logical reasoning.

The Four Conditions

1. Bulugh (Reaching Puberty)

- Hajj is not obligatory on a child who has not yet reached puberty.
- If a child performs Hajj, it counts as Nafl (optional) — not as the obligatory Hajj.
- After reaching puberty, they must perform Hajj again as their first obligatory one.
- This is a commonly asked question, and the Hadith confirms it clearly.

2. Aql (Sound Mind)

- Hajj is not obligatory on a Majnun (a person who is mentally ill or has lost their mind).
- Sharia (Islamic law) does not address or obligate such a person.
- If they recover their mind and then perform Hajj with a fresh intention, that would count as the obligatory Hajj.

3. Islam

- Hajj is only obligatory on a Muslim.
- A non-Muslim's Hajj — even if performed many times — does not count.
- After accepting Islam, they must perform Hajj fresh as a Muslim.

Scholarly Debate on This Point

There is a difference of opinion between Hanafi scholars and Imam Shafi'i on whether non-Muslims are accountable (mukallaf) for Islamic acts of worship:

	Hanafi View	Imam Shafi'i's View
In this world	Non-Muslims are not obligated to perform Islamic acts	Same — they cannot perform them
In the Hereafter	They will not be questioned about Salah, Hajj, etc. — they go directly to punishment for disbelief	They will be questioned and punished for not performing these acts

Imam Shafi'i's evidence: The Quranic verse says “upon the people” — general, not “upon Muslims only.”

Hanafi response: The general wording becomes specific when read in context — the next part of the verse addresses non-believers separately, meaning the first part was specifically for Muslims. Also, logically, how can you make something obligatory on someone who cannot perform it?

4. Freedom (Not Being a Slave)

- Hajj is not obligatory on a slave (abd).

- Even if a slave performs Hajj 10 times, none of it counts as the obligatory Hajj.
- After gaining freedom, they must perform Hajj again from scratch.

Why? — The Two Required Capabilities

For Hajj to be obligatory, a person must have both:

1. **Financial capability** — ability to own money, food, and means of travel.
2. **Physical capability** — control over their own body and self.

A slave has neither — their body is controlled by their master, and they cannot own anything. So they are missing both conditions entirely.

Important Comparison: Slave vs. Poor Person (Faqir)

Situation	Slave	Poor Person (Faqir)
Hajj obligatory at start?	No	No
If they somehow perform Hajj, does it count?	No — still does not count	Yes — it counts as obligatory Hajj
Why the difference?	Missing both capabilities (financial + physical) even with master's permission	Only missing financial capability at start. When he arranges his travel and food and begins the journey, he fulfills the financial capability during the Hajj itself

Key point about the poor person: When he starts his journey and actually arranges food and travel — even if others helped him — he has now proven financial capability. So his Hajj turns into the obligatory one, and he does not need to repeat it even if he becomes wealthy later.

Exception: Why Does Salah (Prayer) Work Differently for a Slave?

A slave's Salah (prayer) counts as obligatory even though his Hajj does not. Here is the reasoning:

- A slave's physical services belong to his master — except for the time needed for obligatory prayers. Sharia gave this concession specifically for prayer.
- Prayer is short — it causes no significant harm or financial loss to the master.
- Hajj and Jihad involve long absence and financial expense — significant harm to the master.
- If Sharia counted a slave's Hajj as obligatory, slaves would rush to perform it and pressure their masters for permission — causing harm to masters both physically and financially.
- So Sharia protected the master's rights by not counting Hajj or Jihad as obligatory for a slave.

Also, counting Jumu'ah (Friday prayer) as valid for a slave actually benefits the master — because if it did not count, the slave would still need to pray Zuhr separately, taking even more time. So it is more practical and fair to count it.

Follow-Up Cases: What If a Condition Is Gained Mid-Hajj?

Child Who Reaches Puberty During Hajj

- **Hanafi view:** If he started with intention of Nafl (optional), it stays Nafl — even if he reaches puberty midway. He must start fresh with new intention as an adult for it to count as obligatory.
- **Imam Shafi'i's view:** If he reaches puberty before the key act of Wuquf (standing at Arafah), it can count as obligatory — because in his view, obligatory Hajj can be fulfilled even with a Nafl intention.

For It to Count as Obligatory (Hanafi view)

The person must:

1. Make a new intention (Niyyat) after gaining the condition (puberty, sanity, Islam, or freedom).
2. Recite Talbiyah freshly.
3. Perform the key pillars of Hajj — especially Wuquf at Arafah (standing at Arafah) and Tawaf al-Ziyarah (the obligatory circling of the Kaaba) — **after** gaining the condition.

Same rule applies to:

- A Majnun who regains sanity mid-Hajj.
- A Kafir who accepts Islam mid-Hajj.
- A Slave who is freed mid-Hajj (this case will be covered in the next class).

Q&A at the End: Why Is Ramadan Fasting Different?

Student's question: In Ramadan, even if someone starts fasting with a Nafl intention, it still counts as obligatory. Why doesn't the same apply to Hajj?

Teacher's answer:

- In Ramadan fasting, the person who is ill or traveling is already eligible for the obligation — they just have a temporary concession (choice) given to them by Sharia. They are fully capable of fasting being obligatory on them.
- A child or slave is not in that category at all — they are simply not in a state where anything can be made obligatory upon them.
- So whatever a child performs — it can only ever be Nafl, not obligatory — because the very foundation of eligibility is missing.
- But a sick or traveling adult is still fundamentally eligible — the concession is just a temporary allowance, not a removal of eligibility.

Closing

The teacher wraps up by saying:

- Four conditions covered: Puberty, Sound Mind, Islam, Freedom.
- More conditions are coming in future classes.
- Next class will continue with the case of the slave who is freed mid-Hajj.
- Next session will be at 7:15 inshallah.

Masail e Hajj — Class 2 Summary

DATE May 12, 2026

TOPIC Physical capability (Istita'at) for Hajj — the case of a blind person

Background

The fifth condition for Hajj to be obligatory is **physical capability**. The class examined the specific case of a **blind person** and whether Hajj is obligatory upon them.

Two scholarly opinions

Opinion 1 — Imam Abu Hanifa

Hajj is **not obligatory** upon a blind person to perform himself. His reasoning:

- A blind person cannot independently perform the actions of Hajj — he cannot travel, mount or dismount, or navigate without assistance.
- Any capability he has is **dependent on another person**, and that other person is not under his control.
- In Sharia, capability achieved through someone not in one's control **does not count as true capability**.
- Example given: an elderly person too weak to sit firmly — even if someone helps him, Hajj is still not obligatory on him.
- Obligating Hajj in such a case would create **haraj (undue hardship)**, which Islam does not impose.

Opinion 2 — The Sahibain (Imam Abu Yusuf and Imam Muhammad) — preferred opinion

Hajj is **obligatory** upon a blind person **if he has a guide**. Their reasoning:

- A blind person is physically fit — he can perform all actions of Hajj: Tawaf, Rami (stoning), and all other rites.
- All he lacks is **directional guidance**, not physical ability.
- If a guide is available, he has no valid excuse.
- Therefore, if a guide is present, Hajj is obligatory upon him personally.

The Hadith argument (Zaad and Rahila)

The Sahibain argued that the Prophet ﷺ defined Istita'at (capability) as having **Zaad** (food and provision) and **Rahila** (means of travel) — and a blind person can have both.

Imam Abu Hanifa's response: The Prophet ﷺ mentioned Zaad and Rahila as **examples**, not as an exhaustive definition of capability. Evidence:

- A person blocked by a sea with no ship available is not obligated for Hajj, even if he has Zaad and Rahila.
- A person restricted by a government or enemy is likewise not obligated.
- This proves capability has additional conditions beyond just Zaad and Rahila.

Two cases of blindness — detailed ruling

Case 1: Blind before Hajj became obligatory on him

- **If a guide is available** → Hajj is obligatory; he must perform it himself.
- **If no guide is available** → Hajj is not obligatory; he does not need to send someone on his behalf.

Case 2: Became blind after Hajj was already obligatory on him (i.e. he delayed Hajj while healthy)

- **If capable of traveling with a guide** → He must perform it himself.
- **If not capable of traveling** → He must arrange for someone to perform **Hajj-e-Badal** (proxy Hajj) from his wealth, or make a **wasiyyah** (bequest) that it be done after his death.

Question raised by a student

Q: In Zakat, if a person's wealth is lost before paying, the obligation is lifted. Why doesn't the same apply to Hajj — i.e. why does Hajj remain obligatory even after blindness occurs?

A (brief): According to the Sahibain, blindness is not considered a major disability that makes a person incapable. It is a minor barrier. Therefore, since the obligation was already established while he was healthy, it remains — blindness alone does not remove it.

Next class

Wednesday (tomorrow) at 9:30 PM

Topic: the conditions related to **arranging provisions and means of travel** (Zaad and Rahila) for Hajj.

Ongoing schedule agreed:

- Monday and Wednesday → **9:30 PM**
- Tuesday, Thursday, and Friday → **7:15 PM**

Masail e Hajj — Class 3 Summary

DATE May 13, 2026

TOPIC Conditions of Hajj — Zad & Rahila (Travel Expenses & Transport)

TEACHER Mufti Umar Aejaaz

Introduction

This lesson discusses one of the key conditions (شروط) that make Hajj obligatory (فرض) upon a person — specifically the condition of **Zad** (زاد) and **Rahila** (راحلة).

Important note: This condition applies only to someone who lives away from Makkah. A Makki (person residing in Makkah) can walk to the Haram easily, so the transport condition does not apply to him in the same way — similar to how someone walks to the Masjid for Jumu'ah.

Two Key Terms

- **Zad** (زاد) — Travel provisions, meaning food, stay, and all expenses needed during the journey.
- **Rahila** (راحلة) — The means of transport, whether an animal (in old times), a vehicle, or a flight ticket today.

Central Question: Is Ownership Required?

Before getting into the opinions of the scholars, two concepts must be understood:

- **Milk** (ملك) — Full ownership. You own something completely and can use it, sell it, or give it away however you like.
- **Ibaha** (إباحة) — Permission to use. Someone else owns it but permits you to use it. You have no independent authority over it.

Opinions of the Four Imams

Imam Abu Hanifa and the Hanafi Majority

Both Zad and Rahila must be in your **full ownership (Milk)**. If someone merely gives you permission (Ibaha) to use their food and transport, Hajj does **NOT** become obligatory upon you. The argument is that Ibaha can be withdrawn at any moment — you do not have guaranteed, unconditional access — so full Istita'at (استطاعة — capability) is not achieved through it.

Imam Shafi'i (رحمه الله)

Both Zad and Rahila are required, **BUT** Ibaha (permission to use) is also sufficient. If someone from your close family — like your father — arranges and permits you to use his food and transport as his responsibility, Hajj becomes obligatory upon you. However, if a complete stranger (Ajnabi) does this, Imam Shafi'i has two opinions — one says Hajj becomes obligatory, another says it does not.

He also used the example of **Tayammum** (تيمم — dry ablution using dust when water is unavailable): if someone permits you to use his water, you are NOT eligible for Tayammum because water is accessible to you. Similarly, if someone permits you to use his Zad and Rahila, you are capable — so Hajj is obligatory.

The Hanafi counter-argument: The rule of Tayammum is different. The Quran says you may do Tayammum when you cannot find water — that means you have no access at all, neither by ownership nor by permission. So that example does not apply here. For Hajj, the Quran demands full and unconditional capability (Istita'at), which Ibaha cannot guarantee since permission can be taken back at any time.

Imam Malik (رحمه الله)

Rahila (means of transport) is **NOT** a condition at all. If a person is healthy and physically capable of walking the entire journey, Hajj is obligatory upon him even if he has no vehicle, ticket, or animal.

His argument is from the Quran:

وَلِلّٰهِ عَلَى النَّاسِ حِجُّ الْبَيْتِ مَنِ اسْتَطَاعَ اِلَيْهِ سَبِيْلًا

“And upon Allah is the duty of Hajj for the people — for whoever is able to find a way to it.” (Aal Imran: 97)

He says this ayah does not specifically mention a vehicle. A healthy person who can walk has found a way — so Hajj is upon him.

The Hanafi response: The great scholars of tafsir (Quranic interpretation) have explained this very ayah to include two specific requirements — Zad (provisions) and Rahila (transport). Walking the entire journey is not a realistic or easy undertaking, so it cannot be used as the measure of capability for a person living far from Makkah.

What Happens if Someone Gifts You a Hajj Ticket?

If someone gifts (هدية — Hadiya, a gift where ownership transfers) you a flight ticket and arranges your food — ownership is now yours — so Istita'at could be achieved. But is it obligatory upon you to accept this gift?

- **According to the Hanafis:** No. Accepting a gift is not compulsory. You are not sinful for declining.
- **Imam Shafi'i** has two opinions on this as well.

How Much Does One Need? — The Criteria of Zad & Rahila

The financial capability required for Hajj to become obligatory means the following must all be in place simultaneously:

1. **Enough money** to cover your travel to Makkah and back using some means of transport (not on foot if you are far).
2. **A moderate (average, not luxurious) stay and food package** during the journey — no extravagance required, but comfort must be manageable.

3. **All of the above must be over and above your essential needs.** Things already in your use are NOT counted — these include:
- The house you live in
 - Your servant (Khadim — خادم)
 - Your horse or personal vehicle
 - Your weapons (in the classical context)
 - Your clothing and furniture
 - All other daily-use items
4. **You must also arrange the expenses (Nafaqa — نفقة)** of your dependents — family, servants — for the entire period you will be away for Hajj. This includes both food and clothing.
5. **Any debts (Dain — دين) you owe must be subtracted first.** Example given: if you have 10 lakh rupees but owe 8 lakh in debts, only 2 lakh remains — if that is insufficient for Hajj expenses, Hajj is not yet obligatory upon you.
-

How Long Must Family Expenses Be Arranged?

Some older scholarly opinions say one month's expenses must remain in your account even after returning from Hajj. Others say one full year.

The teacher clarifies: these older opinions were based on the reality of that era — Hajj journeys sometimes took a full year or more by animal travel. Today the journey takes hours, and a stay of one to four weeks is typical. So the rule is simply: arrange your family's expenses for however long you will be away. If it is 10 days, then 10 days. If one month, then one month.

Special Cases Discussed

Case 1 — Shared Transport

If a Rahila is shared between two people on a rotation — one rides while the other walks, then they switch — this is **NOT** sufficient. The Rahila must be available to you for the entire journey without interruption.

Case 2 — Extra House Not in Use

If a person owns an extra house he does not live in and does not rent out, and its value is enough to fund Hajj, then according to **Ibn Shuja'** (a Hanafi scholar), it **IS** counted. He must sell it and perform Hajj. He also cannot take Zakat in this situation since the value of this property reaches Nisab (نصاب — minimum threshold of wealth).

Case 3 — Expensive House Being Used

If a person lives in a house worth 50 lakh rupees, and a simpler house is available for 30 lakh — could he sell, downgrade, and use the leftover money for Hajj? The answer is **No**. The house he currently lives in is an essential need and is not counted. He is not required to downgrade his home to fund Hajj. However, if he chooses to do so voluntarily, that is a good deed (Nafal — نافلة — voluntary good act) for him.

Case 4 — Person with Savings but No House or Servant

Abu Yusuf (رحمه الله), the student of Imam Abu Hanifa, says: if a person has money in hand sufficient for Hajj but has no house (living on rent) and no servant — and he can arrange family

expenses for the Hajj period — then Hajj is **immediately obligatory**. He should NOT delay it by first buying a house or hiring a servant. He can continue living on rent as he already is. Spending that money on a house first — instead of Hajj — would make him sinful, because Hajj was already obligatory upon him at that point.

Case 5 — Food for the Family

It does not mean the family must be left with a full year's food stored at home. It means enough provision must be arranged to cover the family's needs for the period of absence. Any additional stockpiling beyond that is unnecessary.

Conclusion of This Section

The obligatory nature of Hajj requires:

- Full ownership of Zad and Rahila (Hanafi position)
- Both must be beyond your essential needs and beyond your debts
- Family expenses for the duration of the trip must be covered
- The Rahila must be available throughout the entire journey, not on a rotation

Next lesson: The next condition for Hajj — that the journey must be safe and secure.

Masail e Hajj — Class 4 Summary

DATE May 18, 2026

TOPIC Safety of travel (Amn al-Tariq), women's conditions for Hajj, and mahram rules

TEACHER Mufti Umar Aejaz

Introduction

This class continues the conditions of **Istita'at** (استطاعة) [capability] that make Hajj **Farz** (فرض) [obligatory]. Class 3 covered **Zad** (زاد) [travel provisions] and **Rahila** (راحلة) [means of transport]. Today's focus:

1. **Amn al-Tariq** (أمن الطريق) — safety and security of the journey.
2. **Conditions specific to women** — especially **mahram** (محرم) and related rules.

General conditions (Zad, Rahila, physical capability, etc.) apply to **men and women both**. A few extra conditions apply **only to women**.

Part 1 — Amn al-Tariq (Safety of Travel)

Central question

If a person has money and transport but **travel is not safe** for any reason, is Hajj still obligatory?

Opinion 1 — Not preferred: safety is a condition for *performance*, not for *obligation*

- Hajj becomes Farz on him even without safe travel.
- He is **not obliged to actually go** until the road becomes safe.
- **Practical result:** If he never got safety in his life and is now dying, **Hajj-e-Badal** (حج البدل) [proxy Hajj] and **wasiyyah** (وصية) [bequest] may be required — because Hajj was already obligatory on him, only performance was delayed.

Their evidence — Hadith of Zad and Rahila

When the Prophet ﷺ was asked what capability (*istita'ah*) for Hajj means, he mentioned only **food/provisions** and a **riding animal** — no mention of safety:

عَنْ أَبِي هُرَيْرَةَ رَضِيَ اللَّهُ عَنْهُ قَالَ: قَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ: «مَنْ مَلَكَ زَادًا يُبْلَغُهُ إِلَى كَعْبَةِ اللَّهِ وَسَبِيلًا يَسِيرُ فِيهِ إِلَى بَيْتِ اللَّهِ فَلَيْسَ لَهُ أَنْ يَتْرَكَ حَجَّ بَيْتِ اللَّهِ»

“Whoever possesses provision that reaches him to the Ka‘bah of Allah and a path by which he may travel to the House of Allah — he must not leave performing Hajj of the House of Allah.”

Ref: Sahih Muslim, 1331; Sahih al-Bukhari, 1521 (narration of Abu Hurayrah رَضِيَ اللَّهُ عَنْهُ).

Their argument: Since the hadith does not mention **amn** (أمن) [safety], safety is **not** a condition for obligation — only for going.

Opinion 2 – Preferred (Hanafi): safety is a condition for *obligation* itself

- **Without safety, Hajj is not Farz at all** – not merely delayed.
- If he dies without ever having safe travel, **Hajj-e-Badal is not Wajib** (واجب) [obligatory] on him before death, because Hajj was never established as Farz on him.

Quranic basis

Allah tied Hajj to true capability:

وَلِلّٰهِ عَلَى النَّاسِ حِجُّ الْبَيْتِ مَنِ اسْتَطَاعَ اِلَيْهِ سَبِيْلًا

“Hajj to the House is a duty owed to Allah by people – for whoever is able to find a way to it.”

Ref: Surah Aal Imran, 3:97.

Logic: A person **cannot** be *mustati* (مستطيع) [truly capable] if the road is unsafe – just as he cannot be capable without Zad and Rahila. **Istita’at** requires that travel be realistically possible, which includes **security**.

Answer to the hadith (Zad and Rahila only)

The hadith mentions Zad and Rahila as **examples (tamthil / jumla ‘ala al-ghalib)** of what people normally need – not as an **exhaustive list** of every part of capability.

Proof the list is not limited to two things:

Situation	Has Zad + Rahila?	Hajj Farz?
Blocked by sea, no ship	Yes	No
Blocked by enemy / government	Yes	No
Unsafe road	Yes	No (preferred view)

Similarly, the same hadith does **not** mention **physical fitness (quwwah badaniyyah)** – yet everyone agrees a paralysed person without help is not obligated. The hadith describes what is **usually** enough, not every condition.

Key principle: The real **shart** (شرط) [condition] is **full Istita’at**. Whatever is needed to make travel truly possible – Zad, Rahila, **and** Amn – falls under that.

Comparison: Zad, Rahila, and Amn

	Zad	Rahila	Amn al-Tariq
Meaning	Provisions for journey	Transport	Safety of the way
Without it, can he travel?	No	No	No
Listed in the hadith?	Yes (as example)	Yes (as example)	No – but same rule
Role in obligation	Part of Istita'at	Part of Istita'at	Part of Istita'at

Case – Rich, capable, but never had safe travel; now dying

View	Hajj ever Farz on him?	Hajj-e-Badal before death?
Preferred (Hanafi)	No	Not Wajib
Other opinion	Yes (obligation without performance)	Wajib (wasiyyah / Badal)

Part 2 – Conditions Specific to Women

Two extra conditions (Hanafi study); the second will be completed next class:

1. **Mahram** (محرّم) – availability, readiness, and **financial maintenance** (nafaqa / zad) of the mahram.
2. **Not in Hayd / 'Iddah** (حَيْض / عِدَّة) [menstruation or waiting period] – when travel for Hajj is not allowed; **next class insha'Allah**.

Part 2A – Mahram: Hanafi vs Imam Shafi'i

Hanafi position (preferred in this class)

- **Without a mahram (or husband), Hajj is not Farz** on the woman.
- She **cannot** travel for Hajj **alone**, even if she is wealthy.
- Going without mahram is **not valid** as the obligatory Hajj she owes.

Evidence – Hadith specific to Hajj

لَا يَحِلُّ لِمَرْأَةٍ تُؤْمِنُ بِاللَّهِ وَالْيَوْمِ الْآخِرِ أَنْ تَحُجَّ إِلَّا مَعَ مَحْرَمٍ

“It is not lawful for a woman who believes in Allah and the Last Day to perform Hajj except with a mahram.”

Ref: Sunan al-Tirmidhi, 1174 (hasan); Ahmad, 1/393 — as cited in fiqh works; wording as taught in class.

Meaning: If Hajj without mahram is **haram / not permitted**, it cannot be **obligated** upon her in that state — you cannot command what Sharia forbids.

Evidence — General travel hadith

لَا يَحِلُّ لِمَرْأَةٍ تُؤْمِنُ بِاللَّهِ وَالْيَوْمِ الْآخِرِ أَنْ تُسَافِرَ مَسِيرَةَ يَوْمٍ وَلَيْلَةٍ إِلَّا مَعَ ذِي مَحْرَمٍ

“It is not lawful for a woman who believes in Allah and the Last Day to travel a distance of one day and one night except with a mahram.”

Ref: Sahih al-Bukhari, 1088; Sahih Muslim, 1341 (hadith of Ibn ‘Abbas رضي الله عنه).

Distance: In early times this was estimated as about **48 miles (77 km)** — **Safar (سفر)** [long journey] in Sharia terms. Hajj from outside Makkah is always this type of travel.

Two reasons for mahram (as taught)

1. **Protection (hifz / amn)** — from non-mahram men on a long journey; women need a protector.
2. **Physical support** — travel is hard; a mahram helps her during the journey.

Both apply to **young and old** women — an elderly woman may need support **more**, and protection is needed at every age.

‘Aql (عقل) / logic used in class: Women are described in classical discourse as needing protection on long travel like something exposed unless covered — **mahram** is that protection in Sharia.

Imam Shafi‘i’s position (mentioned for contrast — not Hanafi fatwa)

- If **trustworthy, reliable Muslim women** are with her in the group, Hajj **can be Farz** even without mahram.
- He uses the general ayah of Hajj on “whoever is capable” — no mention of mahram in the verse.

Hanafi answer to the ayah

(Aal Imran: 97) وَلِلَّهِ عَلَى النَّاسِ حِجُّ الْبَيْتِ مَنِ اسْتَطَاعَ إِلَيْهِ سَبِيلًا

The ayah speaks about one who is truly **mustati‘**. A woman **without mahram** is **not considered capable in Sharia** for this type of journey — so she does not fall under this general wording. Capability for her **includes** mahram.

Hanafi answer to “other women will protect her”

- Other women are also **not safe alone** on long travel in the same way.
- A larger group of women does **not** remove the need for mahram — harm and **fitnah (فتنة)** [temptation / moral risk] can increase, not decrease.

- **Khalwah** (خلوة) [seclusion] with a non-mahram man is haram **even if other women are present** – so protection by women alone is insufficient.

Part 2B – Mahram Must Be Ready and Financially Covered

Hajj is Farz on the woman only when **all** of the following are already in place:

1. **Mahram (or husband) exists** and is **willing to travel** with her.
2. She has enough wealth for **her own** Zad, Rahila, and journey costs.
3. She has enough wealth for the **mahram's** journey costs as well – **nafaqa** (نفقة) [maintenance] of the mahram for that trip.

Important: It is **her duty** to afford the mahram's expenses for Hajj – **not** the mahram's duty to pay for himself so she can go. If she cannot afford both, Hajj is **not Farz** on her.

Scenarios

Situation	Hajj Farz on her?	Can she go alone?
No mahram at all	No	No
Mahram exists but refuses to travel	No	No – she cannot force him
Mahram ready but she cannot pay his costs	No	No
Mahram ready, she can pay both	Yes	Yes – with mahram
She has money; tries to go alone without mahram	No (not Farz)	No – not allowed

She does not have to:

- **Force** the mahram to travel.
- **Borrow money** or put herself in hardship to arrange the mahram's costs – if money is not there easily, Hajj is not Farz.
- **Get married** just to obtain a mahram for Hajj.

Analogy – poor man: A poor man is not told to borrow and suffer to create Zad and Rahila. Likewise, a woman is not told to borrow to create the mahram's expenses.

Principle: If an 'ibadah is tied to a **condition**, you perform it when the condition exists – you are **not** obliged to **create** the condition by hardship. When the condition is missing, **leave it** – Hajj is not Farz.

Optional: Some women collect money over years for Hajj by choice – that is **Nafl / optional** effort, not a Sharia command.

Two opinions — must she arrange mahram's costs if she is rich enough?

Opinion	Ruling
Preferred (Hanafi)	She needs enough for herself + mahram easily. No need to borrow or struggle.
Other opinion	Zad and Rahila are enough for her ; she must try to arrange mahram's costs herself.

Preferred view reasoning: Same as above — Sharia does not command **takalluf** (تكلف) [unnecessary burden] to manufacture a condition.

Part 2C — Husband's Permission

Journey type	Husband's permission (Hanafi)
Normal long travel	Required — she is generally under his permission for travel
Hajj / 'Umrah when Hajj is Farz and all conditions met	Not required — exception for 'ibadah (عبادة)
Nafl travel (e.g. optional 'Umrah for pleasure)	Husband may stop her — not the same as Farz Hajj

Hanafi proof by analogy: She does not need husband's permission for **obligatory Salah** or **Ramadan fast** when due — similarly, **Farz Hajj** when fully due is an exception.

Imam Shafi'i: She **still** needs husband's permission even for obligatory Hajj — because of **marital rights** (huquq al-zawj).

Class conclusion: Hanafi view accepted for **Farz Hajj** — no permission needed when Hajj is truly Wajib and all shurut are met.

Example: Brother is mahram, ready to go, she has money for both — Hajj is Farz; she may go **even if husband refuses** (Hanafi).

Part 2D — What Counts as Mahram?

Mahram = a man with whom **marriage is permanently impossible (haram forever)** — by blood, nursing, or permanent marriage relationship (e.g. father, son, brother, father-in-law, son-in-law).

Not sufficient:

- **Temporary mahram** — e.g. a relationship that only blocks marriage for a limited time; not valid for this travel rule.
- **Immature boy** — mahram by relation but too young to protect anyone.
- **Majnun** (مجنون) [insane person] — cannot handle a hard journey.
- **Majusi** (مجوسي) [fire-worshipper] non-Muslim mahram — in their religion incest may be permitted; not a safe companion in Sharia's view.
- **Kafir** (كافر) non-Muslim mahram who is **not** majusi — **some allowance** in discussion (e.g. Christian brother may travel if he protects honour); **except** the majusi case as taught.

Young girl: A **small girl** not yet at the age where fitnah is feared (class example: **before about nine years**) — **may** travel without mahram for long distance, because the reason for the rule does not apply to her yet. **After** that age, mahram is required for **Safar**.

Distance rule: Mahram is required for **Safar** $\approx$ **48 miles or more**. **Less than that** — e.g. woman living in **Makkah** going to the Haram — **no mahram condition** for that short trip (same idea as going to the masjid).

All schools agree (as taught): Even an **elderly woman** may **not** do long Hajj travel **without mahram** — hadith is ‘amm (عام) [general for all women], not limited by age.

Part 2E — Second Condition (Preview)

Not in Hayd or ‘Iddah — while in menstruation or ‘iddah, she is **not allowed** to travel for Hajj; therefore Hajj is **not Farz** during that time. When it ends, it may become Farz if other conditions exist. **Details: next class.**

Q&A from Class

Q1 — If I get wealth only shortly before Hajj (e.g. one month before Dhul Hijjah), when does Hajj become Farz?

Answer: Unlike **Zakat**, there is **no fixed “one year on wealth”** rule for Hajj. Hajj is tied to **Istita’at**, not a calendar year on money.

- Whenever you have enough to **arrange the journey** (reserve seat, provisions, family expenses, mahram’s costs if applicable, etc.), Hajj becomes **Wajib**.
- **No specific** “one month / one week before Hajj season” in Sharia — only capability matters.
- **Best practice:** Perform Hajj **as early as possible** once it becomes Farz — do not delay without reason.

Q2 — Hajj became Farz; then I lost the money and never got it again. Is Hajj still Farz?

Answer: **Yes** — it remains Farz on the person.

	Zakat	Hajj
Tied to	Wealth (mal)	The person
If wealth gone before paying	Obligation drops	Obligation does not drop
Reason	Zakat is on the money itself	Mal was only the trigger ; once Farz, it stays on him until done

He must perform Hajj when capability returns — **Hajj-e-Badal** rules apply if he dies while still owing it (if Hajj had truly become Farz earlier).

Q3 – Today women travel in groups for ‘Umrah/Hajj; visas are issued without mahram. How do we convey the Hanafi ruling?

Answer (as taught):

- Government visas and group travel **do not change** Allah’s ruling.
- If Sharia requires mahram and she goes without it, the journey is **not** the Shari‘ Hajj/‘Umrah Allah wants – even if rituals are done.
- **‘Ibadah** = what Allah commanded, not personal desire.
- **Hanafi and Shafi‘i** both have strict rules; Shafi‘i allows **some** group-of-women scenarios for obligation – **Hanafi does not** approve that for lifting the mahram requirement.
- Sensitivity of **women’s safety** in Sharia is **severe (shadid)** – do not treat it lightly because of modern custom.

Practical note for students: Teach with wisdom and clarity; rulings are from Sharia, not from visa policy.

Summary Table – When Is Hajj Farz on a Woman? (Hanafi)

Condition	Required?
Bulugh, ‘Aql, Islam, freedom (general shurut)	Yes
Zad + Rahila (own + family + debts cleared)	Yes
Amn al-Tariq	Yes
Mahram or husband available & willing	Yes
Her + mahram’s travel costs affordable	Yes
Not in hayd/‘iddah (for travel)	Yes
Husband’s permission (when Hajj is Farz)	No (Hanafi)

Closing

- Covered: **Amn al-Tariq** (preferred: condition for **obligation**), **mahram**, **costs**, **permission**, **types of mahram**, **distance**, **Q&A**.
- **Next class:** Second women’s condition – **hayd / ‘iddah**; same time as scheduled.

Schedule (as agreed in series):

- Monday & Wednesday → **9:30 PM**
 - Tuesday, Thursday & Friday → **7:15 PM**
-

Key Arabic Terms (Quick Reference)

Arabic	Meaning
استطاعة	Capability for Hajj
أمن الطريق	Safety of the road
محرم	Unmarriageable relative (for travel)
سفر	Long journey (~48+ miles)
نفقة	Maintenance / expenses
حج البديل	Hajj by proxy
وصية	Bequest
فتنة	Trial / moral temptation
تكلف	Burden / forcing hardship

Masail e Hajj — Class 5 Summary

DATE May 19, 2026

TOPIC Iddah travel restrictions, scenarios of talaq/wafat during Hajj journey, and Hajj Badal

TEACHER Mufti Umar Aejaaz

Introduction

This class continued the study of conditions specific to women that affect the obligation of Hajj. After covering the condition of **Mahram** in prior sessions, two further topics were addressed today:

1. The second women-specific condition: she must not be in a state of ‘**Iddah** (عِدَّة) [waiting period after divorce or the death of a husband].
2. Scenarios of what happens when talaq or the husband’s death occurs *during* the Hajj journey.
3. The ruling of **Hajj Badal** (حَجٌّ بَدَل) [Hajj performed on behalf of another] for those physically or otherwise unable to perform Hajj themselves.
4. The condition that financial capability must coincide with the *season* of Hajj for the obligation to become binding.

Second Condition Specific to Women: Absence of ‘Iddah

A woman in her ‘iddah period — whether due to divorce or the death of her husband — is **not permitted to leave her home**. This is based on the Quranic command:

لَا تُخْرِجُوهُنَّ مِنْ بُيُوتِهِنَّ وَلَا يَخْرُجْنَ

“Do not expel them from their homes, and they themselves should not leave.”

Ref: Surah al-Talaq (65:1)

Because she is restricted from traveling during the ‘iddah, Hajj does not become obligatory upon her during this period, even if all other conditions are met.

Evidence from the Companions: ‘Abdullah ibn ‘Umar and ‘Abdullah ibn Mas’ud (رضي الله عنهما) returned women who were in ‘iddah and had set out for Hajj.

Reasoning: The ‘iddah is time-bound and cannot be delayed. Hajj, by contrast, can be performed in any subsequent year. Therefore, the ‘iddah takes priority.

Scenarios: Talaq or Husband’s Death During the Hajj Journey

If a woman had already departed for Hajj and the talaq or death of her husband occurred *mid-journey*, the rulings vary by circumstances.

Talaq al-Raj'i (Revocable Divorce)

The Nikah relationship has not yet ended. The husband may accompany her and continue the journey. It is **preferred (mustahabb)** for the husband to revoke (raj'at) the talaq so she is more comfortable during travel. The journey continues for both.

Talaq al-Ba'in / Death of Husband (Relationship Ended)

The husband is no longer her Mahram and cannot continue traveling with her. She is now in 'iddah — either **'Iddah al-Talaq** or **'Iddah al-Wafat (عِدَّةُ الْوَفَاةِ)** [waiting period after the husband's death]. The following four cases determine what she must do:

Case 1: Her Home is Closer (Less than Mafat al-Safar)

Mafat al-Safar (مَسَافَةُ السَّفَرِ) [the distance that defines travel in Shari'ah] = approximately 48 miles.

If the distance back to her home is less than 48 miles, and Makkah is farther away, she **returns home**. Going back would not constitute a new journey (safar shar'i), so she fulfills her 'iddah there as intended.

Case 2: Makkah is Closer (Less than Mafat al-Safar)

If Makkah is now less than 48 miles away, and her home is farther, she **continues forward** to Makkah. The remaining distance does not constitute safar, so the Mahram requirement no longer applies. She performs Hajj and observes 'iddah there.

Case 3: Both Home and Makkah are Within 48 Miles

Neither direction constitutes a full safar shar'i. In this case, she has a **free choice** — she may go forward to perform Hajj or return home. Both are permissible.

Case 4: Both Home and Makkah are Farther than 48 Miles (The Debated Case)

This is the scenario of a traveler from a distant country (e.g., India) who is stranded in the middle of the journey — both her home and Makkah are more than 48 miles away.

The question: Should she stay, go forward, or go back?

This depends on whether the place where she currently is constitutes a safe and comfortable city (misr).

If she is in a safe, comfortable city (Misr):

Scholar	Ruling
Imam Abu Hanifa	She must remain in that city and complete her full 'iddah there, even if another Mahram joins her. That city is treated as her home for 'iddah purposes.
Sahibayn (Imam Abu Yusuf & Imam Muhammad)	If a Mahram joins her, she may continue traveling. Without a Mahram, she must stay regardless.

If she is in an unsafe or uncomfortable place (e.g., a small village):

She cannot remain there safely. In this case:

Scholar	Ruling
Imam Abu Hanifa	She must travel to the next safe city and remain there for her 'iddah.
Sahibayn	If joined by a Mahram, she may continue all the way and complete her 'iddah while traveling.

Core difference of opinion: Does the city where she finds herself become her legal domicile (home) for the purpose of 'iddah?

- **Imam Abu Hanifa:** Yes — she must remain and observe 'iddah there.
- **Sahibayn:** No — it is a foreign city; 'iddah continues to count while she travels.

Note on 'Iddah Commencement

The 'iddah begins **automatically** at the moment of talaq or at the moment of the husband's death. It does not need to be formally initiated. The counting continues uninterrupted, regardless of whether she is stationary or traveling.

Hajj Badal (حَجٌّ بَدَل) — Proxy Hajj

Definition and Obligation

A person who:

- Possesses sufficient wealth (mal) to send someone for Hajj, **and**
- Is unable to perform Hajj personally due to a physical disability, chronic illness, extreme old age, or an external barrier such as security conditions

...is **obligated** to send another person to perform Hajj on their behalf. This is called **Hajj Badal**.

This Hajj Badal is counted as their **Fard Hajj (first obligatory Hajj)**.

If the Person Performs Hajj Themselves Despite the Barrier

If such a person crosses their own barrier and personally performs Hajj (e.g., despite illness or disability), their Hajj is **valid and counted as Fard**. Shari'ah did not require them to cross that barrier, but having done so, their Hajj obligation is fulfilled.

Recovery After Hajj Badal

If the Hajj Badal has already been performed on their behalf, and the person later **recovers fully** and regains the physical capability:

- The Hajj Badal performed is now considered **nafl (supererogatory)**, not Fard.
- They are now **obligated to perform Hajj themselves**, provided they still have the financial means and meet all conditions.

Reasoning: Hajj Badal was permitted due to necessity. When the necessity is removed, the original obligation of performing Hajj personally is restored.

Analogy: The Poor Person Who Performs Hajj

A person who is financially incapable of Hajj but nonetheless manages to go and perform it — fulfilling all other conditions (sane, adult, free) — has performed their **Fard Hajj**. They need not repeat it. Although the financial condition was not met, they themselves crossed that barrier, so Shari’ah counts it.

Comparison with a Slave or Minor:

Person	Status	Hajj Counts as Fard?	
Poor person who manages to go	Subject of obligation, financial condition absent	Yes — barrier crossed	
Slave (abd)	Not a subject of the obligation	No — must repeat after freedom	
Minor (child)	Not a subject of the obligation	No — must repeat after maturity	

A slave or minor performing Hajj must repeat it once they become legally responsible (mukallaf). This is because they were never the *subject* (mahall) of the obligation in the first place — unlike the poor free adult, who is a subject of the obligation; the barrier was only the financial one.

Analogy with Jumu’ah: If a slave attends and performs Jumu’ah, it is counted as his Jumu’ah prayer and he does not need to make up Zuhr. Similarly, if a slave performs Hajj, the situation differs — because the foundational obligation of Hajj does not rest upon him as it does for a free person.

Financial Capability and the Hajj Season

Two Scenarios

Scenario 1 — Capability Acquired Outside the Hajj Season:

A person acquires sufficient mal, but the Hajj season is not currently open. In this case, he is **free to spend that money** as he wishes. Hajj does not become immediately obligatory. He may save it for Hajj or use it for other purposes.

Scenario 2 — Capability Acquired During the Hajj Season (or Carried Over Into It):

If a person has the mal and the Hajj season arrives — i.e., the time when people are preparing and departing for Hajj — then it becomes **obligatory upon him to use that mal for Hajj**. He is no longer free to spend it elsewhere on non-necessities.

Analogy with Wudu' and Water:

- If a person has water and it is not time for Salah, he may use it freely.
- If the time of Salah enters and he has water, it becomes obligatory to use it for wudu'. He may not divert it for other non-essential uses.

Immediate (Fawri) vs. Delayed (Tawsi') Obligation

There is a scholarly difference of opinion on whether the obligation of Hajj must be fulfilled **immediately** (in the very first year of capability) or whether it allows **delay (tawsi')**.

View	Position
Immediate (Fawri):	Hajj must be performed the first available year; spending the mal elsewhere is impermissible.
Delayed (Tawsi') — Preferred (Mufta Bihi) Opinion:	Hajj may be deferred; the mal may be spent elsewhere. However, the <i>obligation</i> of Hajj remains binding. If the person loses capability later, the wujub (obligation) is not dropped — it remains due upon him. He will be sinful if he dies without having performed it.

Key principle: The Wujub of Hajj **does not drop** due to subsequent loss of wealth. If Hajj became obligatory in the season of capability, it remains obligatory even if the mal is later spent or lost.

Q&A from Students

Q: Many people — especially in India and Pakistan — delay Hajj because they say they need the money to marry off their daughters or meet other family responsibilities. Is there any Shari'i basis for this delay?

A (Teacher): The expenses of a daughter's marriage are not Shari'i necessities — they are customs and cultural obligations that people make binding upon themselves. Shari'ah has not mandated extravagant marriage expenditures. Therefore, Hajj **cannot be delayed** on this basis. Per the preferred opinion (tawsi'), the person will not be deemed sinful for delaying due to such reasons — but the obligation of Hajj **remains binding** on him. If he dies without performing it, he will be considered sinful in the sight of Allah. The better course is to perform Hajj as early as possible.

Closing / Next Class

Next topic: The **Arkan** (أركان) [pillars/integrals] of Hajj — specifically:

1. The **Fard** (obligatory) components
2. The **Wajib** (necessary) components

These will be covered with full details in the next class, insha'Allah.

— • —

Masail e Hajj — Class 6 Summary

DATE May 21, 2026

TOPIC Arkān of Hajj: Wuqūf Arafah — its obligation, place, timing, and related rulings

TEACHER Mufti Umar Aejaz

Introduction

This class begins the study of the **Arkān** (أَرْكَان) [pillars] of Hajj — the mandatory actions without which Hajj is not performed at all. The two arkān are:

1. **Wuqūf Arafah** (وُقُوفُ عَرَفَةَ) — standing at the plain of Arafah.
2. **Tawāf al-Ziyārah** (طَوَافُ الزِّيَارَةِ) — details to follow in a future class.

This session focuses entirely on Wuqūf Arafah, covering six key points:

1. The **dalīl** (evidence) behind its obligation
2. The **place** where it is performed
3. The **time** in which it is performed
4. The **duration** of the stay
5. Rulings related to the wuqūf
6. What happens if someone **misses** the wuqūf

Point 1 — The Dalīl (Evidence) for the Farḍiyyah of Wuqūf Arafah

Allah obligated Hajj in the Quran in a **mujmal** (مُجْمَل) [general] manner — without specifying its details. The details were provided by the Prophet ﷺ through aḥādīth. He explained what the essence of Hajj is:

Ḥadīth 1

الْحَجُّ عَرَفَةُ

“Hajj is Arafah.”

The meaning is: *the Hajj is [essentially] the standing at Arafah*. The Prophet ﷺ based the completion of Hajj upon this single action, indicating that it is the **farḍ** [obligatory pillar] without which Hajj does not exist at all.

The Nature of “Completion” (Tamām) Here

A question arises: when the completion of something depends on an action, that action should be **wājib**, not farḍ — because a wājib is what completes an already-existing thing. The answer is that **completion (tamām)** is of two types:

1. **Completion in the sense of existence (wujūd)**: The thing does not exist at all without the action.
2. **Completion in the sense of perfection (kamāl)**: The thing exists but remains incomplete.

Here, the first meaning is intended. The ḥadīth means: whoever performs the wuqūf at Arafah, his Hajj **comes into existence**. Without it, the Hajj has no existence whatsoever. Since the Quranic

āyah obligating Hajj is at the level of **farḍ**, and this ḥadīth is its tafsīr, the wuqūf too is established as farḍ — not merely wājib.

Ḥadīth 2 / Āyah of Quran

ثُمَّ أَفِضُوا مِنْ حَيْثُ أَفَاضَ النَّاسُ

“Then return from where the people return from.”

Ref: Sūrah al-Baqarah (2:199)

Background

During the Jāhiliyyah period, the people of Makkah (the people of the Ḥaram) would **not go to Arafah** during Hajj. They would say: *“We are the people of Allah’s Ḥaram; we will not leave its boundaries like others.”* Since Arafah is located **outside** the boundary of the Ḥaram, they would remain within it and skip the wuqūf.

This āyah was revealed commanding them to return from where other people return from — i.e., from Arafah. The command to return from Arafah implicitly requires going there in the first place. Thus, indirectly, this is an order to perform the wuqūf.

Dalīl 3 — Ijmā‘ (Consensus)

There is **ijmā‘** (consensus) among all the scholars and schools of thought that Wuqūf Arafah is farḍ. No difference of opinion exists on this point.

Point 2 — The Place of Wuqūf

The entire plain of Arafah is the place for the wuqūf, as stated by the Prophet ﷺ:

وَقَفْتُ هَاهُنَا وَعَرَفَةُ كُلُّهَا مَوْقِفٌ

“I stood here, and the whole of Arafah is a place of standing.”

The Prophet ﷺ mentioned the wuqūf in **absolute terms** without restricting it to any particular spot. Therefore, one may stand anywhere in the field of Arafah.

Exception: Baṭn ‘Uranah (بَطْنُ عُرْنَةَ)

The only exception is the **Valley of ‘Uranah**, a specific strip of land within the area. The Prophet ﷺ prohibited standing there for wuqūf and called it a **“mawqif of Shayṭān”** — because Shayṭān would love for people to stand there, as their wuqūf would not be valid. Apart from this valley, the entire field is permissible.

Point 3 — The Time of Wuqūf

The time for Wuqūf Arafah is fixed as follows:

- **Beginning:** After the **zawāl** (when the sun passes its zenith and *Zuḥr* time begins) on the **9th of Dhul Ḥijjah** (*Yawm al-ʿArafah*).
- **End:** Before the **Fajr time** begins on the **10th of Dhul Ḥijjah** (*Yawm al-Naḥr*).

This gives a window of less than twenty-four hours. Any stay at Arafah outside this window is **not counted** as *wuqūf* — similar to how a *ṣalāh* cannot be performed before its prescribed time.

Evidence for the Beginning

خُذُوا عَنِّي مَنَاسِكَكُمْ

“Learn from me your rites of Hajj.”

The Prophet ﷺ performed the *wuqūf* after the *zawāl*, and instructed the Ummah to learn their Hajj from his practice. This establishes the *zawāl* as the starting point.

Evidence for the End

مَنْ أَدْرَكَ عِرْفَةَ بَلِيلٍ فَقَدْ أَدْرَكَ الْحَجَّ ، وَمَنْ فَاتَهُ عِرْفَةُ بَلِيلٍ فَقَدْ فَاتَهُ الْحَجَّ

“Whoever reaches Arafah at night has attained the Hajj; and whoever misses Arafah at night has missed the Hajj.”

This ḥadīth establishes the night between the 9th and 10th as the final window for *wuqūf*.

Difference of Opinion: Day vs. Night

Scholar	Position
Aḥnāf (Ḥanafī school) — Majority view	The time for <i>wuqūf</i> includes both day and night . One may perform it at any point after the <i>zawāl</i> on the 9th until Fajr of the 10th — whether during the day or at night.
Imām Mālik	The actual time for <i>wuqūf</i> is only the night portion . If someone was present only during the daytime and left before night, their <i>wuqūf</i> is not valid .

Imām Mālik’s Dalīl

He relies on the ḥadīth: *“Whoever reaches Arafah at night has attained the Hajj.”* Since the ḥadīth restricts attainment to the night, Imām Mālik restricts the *wuqūf* to the night.

Ḥanafī Response

The Ḥanafī dalīl is the ḥadīth:

مَنْ وَقَفَ بِعِرْفَةَ بَلِيلٍ أَوْ نَهَارٍ فَقَدْ تَمَّ حَجُّهُ

“Whoever stood at Arafah — whether by night or by day — his Hajj is complete.”

This explicitly includes the **daytime** as a valid period. Both day and night are options; neither is exclusive.

Additional Reasoning

Wuqūf Arafah is one of the actions of Hajj, and other actions of Hajj are not restricted to nighttime alone — they may be performed during the day. By analogy, the wuqūf should likewise not be restricted to the night.

Responding to Imām Mālik's Ḥadīth

The ḥadīth cited by Imām Mālik says “*whoever reaches Arafah at night has attained the Hajj.*” The Ḥanafī response: this ḥadīth affirms that the night is a valid time, but it is **silent** about the daytime — it neither validates nor rejects it. Silence cannot be used as evidence to negate the validity of the daytime wuqūf.

Point 4 — Case of Mistaken Dates

Case: Wuqūf Performed on the 10th (Thinking it was the 9th)

If the people counted the month of Dhul Qa‘dah (the month before Dhul Ḥijjah) as thirty days, performed the wuqūf on what they believed was the 9th, but later witnesses testified that Dhul Qa‘dah was only twenty-nine days — meaning the wuqūf was actually performed on the **10th of Dhul Ḥijjah**:

Ruling: The wuqūf is **valid**. What is done is done. It cannot be invalidated because:

- It affects a large number of people, not just one individual.
- Their money and effort would go to waste.
- It happened due to a genuine mistake, which is forgiven.

The dalīl is the ḥadīth:

صَوْمُكُمْ يَوْمَ تَصُومُونَ وَأَضْحَاكُمْ يَوْمَ تَضَعُونَ وَحُجَّتْكُمْ يَوْمَ تَحُجُّونَ

“Your fasting is the day you fast, your sacrifice is the day you sacrifice, and your Hajj is the day you perform it [according to your counting].”

The collective counting of the people is given weight, even if it turns out to be incorrect.

Why the Testimony is Not Accepted to Invalidate

Two additional reasonings:

1. The testimony of those witnesses is a **shahādah for nafi** (testimony to negate), which is inherently weaker (badīlī). It seeks to invalidate the Hajj of the masses, and such negating testimony is not given precedence.
 2. Even if the witnesses are trustworthy, accepting such testimony would create **ḥaraj** (حَرَج) [undue hardship] for all the pilgrims. Such a mistake is a normal occurrence that cannot be avoided, so it is forgiven.
-

Case: Wuqūf Performed on the 8th (Thinking it was the 9th)

If the people counted the previous month as twenty-nine days and performed the wuqūf on what they thought was the 9th, but it later turned out to be only the **8th of Dhul Ḥijjah**:

Ruling: The wuqūf is **not valid**. They must repeat it on the actual 9th, because there is still time and opportunity to perform it correctly. The necessity that would justify accepting a premature wuqūf does not exist here — the correct date is still ahead.

Key distinction:

- Wuqūf on the 10th (after the time has passed) → valid, because there is no chance to repeat it.
- Wuqūf on the 8th (before the time has arrived) → invalid, because the 9th is still to come and the correct wuqūf can still be performed.

Closing / Next Class

The remaining discussion points on Wuqūf Arafah — including the **minimum duration of stay** and **what happens if someone misses the wuqūf entirely** — will be covered in the next class, inshā'Allāh.

Masail e Hajj — Class 7 Summary

DATE May 22, 2026

TOPIC Wuqūf Arafah (continued) — witness testimony cases, duration of stay, departure rulings & missing the wuqūf

TEACHER Mufti Umar Aejaaz

Introduction

This class continues the discussion of **Wuqūf Arafah** from Class 6, completing the remaining points:

1. Further cases of **mistaken dates** and witness testimony
2. The **duration** of stay at Arafah (farḍ minimum and wājib duration)
3. The classification of **ḥadīth** (Uṣūlī vs. Muḥaddithīn divisions)
4. Rulings on **departing before sunset** (ghurūb)
5. What happens if someone **misses** the wuqūf entirely
6. Bonus Q&A: The number of days of **Uḍḥiyah (Qurbānī)**

Continuation — Mistaken Dates: The Analogy of Qiblah

The case discussed in Class 6 — where the wuqūf was performed on the 10th due to a counting error — is compared to the case of **ṣalāh and qiblah**:

If a person does not know the exact direction of the qiblah, he is ordered to use his best judgement (**ijtihād**) and pray facing the direction he believes to be correct. If it later turns out he faced the wrong direction, his ṣalāh is **still valid** — because he practiced upon the Sharʿī dalīl available to him. Similarly, the people practiced upon the Sharʿī ruling (completing the month at thirty days when the moon was not sighted). Their action remains valid even after the error is discovered.

Witness Testimony — Detailed Scenarios

Scenario 1: Witnesses Appear After the Wuqūf is Complete

If the wuqūf has already been performed and everything is done, and witnesses appear one or two days later testifying that the moon was sighted on the 29th (meaning the wuqūf was actually on the 10th, not the 9th):

Ruling: Their testimony is **not acted upon**. What is done is done. The wuqūf was performed on the basis of the Sharʿī dalīl and cannot be invalidated retroactively.

Scenario 2: Witnesses Appear Before Zawāl on the Day of Wuqūf

If witnesses appear on the morning of what the people believe is the 9th — before the zawāl, before the wuqūf has begun — and testify that it is actually the 10th:

The ruling depends on **whether the Imām (Amīr al-Ḥajj) has enough time** to gather the people in Arafah:

Situation	Ruling
Enough time remains (e.g., testimony comes after Maghrib, leaving 12+ hours until Fajr)	The Imām must accept the testimony, make the announcement, and gather the people for the wuqūf. If they do not perform the wuqūf despite having time, their Hajj is not valid .
Not enough time (testimony comes too late to organize the gathering on short notice)	The Imām does not accept the testimony. The people proceed with their original counting and perform the wuqūf the next day after zawāl.

Note on historical context: In early times, delays in witness testimony were understandable because communication was difficult. In modern times, late testimony raises questions about the witnesses' authenticity, since information travels quickly and moon-sighting announcements are widely accessible.

Scenario 3: What About the Witnesses Themselves?

If the witnesses know the actual date but the Imām has declared differently, and the wuqūf is performed on what the witnesses know to be the 10th:

Ruling: The witnesses **must follow the Imām's declaration**, not their personal knowledge. Their wuqūf alongside everyone else is valid. The rationale: the declaration of dates is in the authority of the Imām (**Amīr al-Muslimīn**). Everyone must follow one unified determination; individual knowledge does not override the collective ruling.

The ḥadīth principle:

صَوْمُكُمْ يَوْمَ تَصُومُونَ وَحَجُّكُمْ يَوْمَ تَحُجُّونَ

"Your fasting is the day you fast, and your Hajj is the day you perform it [collectively]."

Scenario 4: Imām Rejects Testimony, but Some People Follow It

If two witnesses testify on the 29th of Dhul Qa'dah that they saw the moon, but the Imām rejects their testimony for a valid reason (e.g., the sky was clear and no one else saw it — suggesting something unreliable), and he completes the month at thirty days:

Some people ignore the Imām's ruling and follow the rejected testimony, performing the wuqūf one day early (on what is the 8th according to the Imām's counting, but the 9th according to the rejected testimony).

Ruling: Their wuqūf is **not valid**. Once the Imām has rejected the testimony, it carries no legal weight. The Imām's declaration is the authoritative ruling, not the testimony of individuals whose claim was officially dismissed.

Point 5 — Duration of Stay at Arafah

The duration of stay at Arafah has two levels:

The Farḍ (Minimum) Duration

The farḍ is fulfilled by **any amount of stay** — even a single second. The evidence is that the Prophet ﷺ mentioned the wuqūf in **absolute terms** without specifying a minimum duration:

مَنْ وَقَفَ بِعَرَفَةَ...

“Whoever stood at Arafah...”

Since no time limit is specified, even the briefest presence counts. The following conditions apply to the farḍ:

- The person may be in **any state** — standing, sitting, riding, walking, or even passing through.
- Even if the person is **unconscious** or **asleep**, the stay is counted.
- **Niyyah (intention)** is **not required** for the farḍ wuqūf. This differs from Ṭawāf, where niyyah is required because Ṭawāf takes place inside the Masjid (which one must enter with intention). Arafah is an open field — mere physical presence suffices.

The Wājib Duration

The wājib level requires staying from the **zawāl on the 9th of Dhul Ḥijjah until the ghurūb (sunset)**. This means being present for some portion of the night as well — once Maghrib time begins, one has caught some part of the night.

Why is this wājib and not farḍ?

The obligation of this extended stay is established through **Khabar Wāḥid** (a ḥadīth narrated through a single chain), not through **Dalīl Qaṭʿī** (definitive evidence). In Ḥanafī uṣūl:

- **Farḍ** = obligation proven by dalīl qaṭʿī (definitive evidence: Quran, mutawātir ḥadīth, or mashhūr ḥadīth).
- **Wājib** = obligation proven by dalīl ḡannī (probable evidence: khabar wāḥid or ḡāhir of a text).

Since the extended stay is proven by khabar wāḥid, it is wājib, not farḍ.

Contrast with the Shāfiʿī School

In the Shāfiʿī school, there is **no concept of wājib** as a separate category between farḍ and sunnah. For them, an obligation is either farḍ or sunnah — regardless of whether it is proven by dalīl qaṭʿī or dalīl ḡannī. Since the long stay is not farḍ according to them, it falls to the level of sunnah.

Practical difference:

- If someone misses a **farḍ**, the action does not count at all.
- If someone misses a **wājib** (Ḥanafī), the action counts but is incomplete, and a penalty (dam) is required.
- If someone misses a **sunnah** (Shāfiʿī), there is no penalty.

Excursus: Classification of Ḥadīth (Uṣūlī vs. Muḥaddithīn)

The teacher clarified the distinction between the two systems of ḥadīth classification, since the ruling above depends on it:

Division According to the Muḥaddithīn (Ḥadīth Scholars)

The Muḥaddithīn divide ḥadīth into two main categories:

1. **Mutawātir**: Narrated by such a large number of narrators in every era that it is inconceivable they all agreed on a lie — whether intentionally or unintentionally. This produces certainty (**‘ilm al-yaqīn**).
2. **Āḥād**: Everything that does not reach the level of mutawātir. This is further subdivided into:
 - **Mashhūr**: Narrated by at least three narrators in every era.
 - **‘Azīz**: Narrated by at least two narrators in every era.
 - **Gharīb**: Narrated by a single narrator in some era.

Division According to the Uṣūliyyīn (Ḥanafī Legal Theorists)

The Uṣūliyyīn divide ḥadīth into **three** direct categories:

1. **Mutawātir**: A ḥadīth that became famous and widely narrated in the **first era** — the era of the Ṣaḥābah. A great number of Ṣaḥābah narrated it, producing certainty.
2. **Mashhūr**: A ḥadīth that was not narrated by a large number in the first era (among the Ṣaḥābah), but gained fame and wide narration in the **second era** — the era of the Ṭābi‘īn. The first two eras (Ṣaḥābah and Ṭābi‘īn) are the eras of legislation (**tashrī‘**), so fame achieved in either counts as strong evidence.
3. **Khabar Wāḥid**: A ḥadīth that gained fame only **after** the first two eras. Regardless of which later generation it became famous in, it remains khabar wāḥid because the era of tashrī‘ has passed. Its evidence is **ẓannī** (probable), not qaṭ‘ī (definitive).

Key implication: In Ḥanafī uṣūl, mutawātir and mashhūr ḥadīth produce dalīl qaṭ‘ī and can establish a **farḍ**. Khabar wāḥid produces dalīl ẓannī and can only establish a **wājib**.

Point 6 — Departing Arafah Before Sunset (Ghurūb)

Departing Before Ghurūb but Still Within Arafah

If a person starts leaving before sunset but is still physically within the boundaries of Arafah when ghurūb occurs, there is **no penalty**. He is still in the field.

Departing Before Ghurūb and Leaving Arafah Entirely

If a person crosses the boundary of Arafah before ghurūb:

School	Ruling
Ḥanafī	A dam (penalty — slaughtering a medium-sized animal) is wājib upon him, because he missed the wājib of staying until sunset.
Shāfi‘ī	No dam , because in their view the extended stay is sunnah, not wājib. Missing a sunnah carries no penalty.

How Can the Dam Be Dropped?

The dam can be dropped if the person **returns to Arafah before ghurūb** and is present when sunset occurs.

Opinion	Ruling
Majority opinion (preferred)	If he returns before ghurūb and is present at sunset, the dam is dropped – because he has compensated for what he missed.
Imām Zufar	Once the dam becomes wājib (by leaving), it cannot be dropped even if he returns. The wājib was established the moment he departed.

Note: This is analogous to the case of crossing the mīqāt without iḥrām: if a person returns and puts on the iḥrām before crossing again, the dam is dropped according to the majority, but remains according to Imām Zufar.

Returning After Ghurūb

Situation	Ruling
He returns after ghurūb but the Imām (Amīr al-Ḥajj) is still in Arafah	Two narrations exist. The preferred (rājiḥ) opinion: the dam is dropped , because the reason for the penalty was leaving before sunset, and he has now compensated by returning while the Imām is still present.
He returns after ghurūb and the Imām has already departed	The dam is established and cannot be dropped according to anyone. The ghurūb has passed and the opportunity is gone.

Missing the Wuqūf Entirely

If a person does not go to Arafah at all during the entire window (from zawāl on the 9th to Fajr of the 10th) – for example, he stayed in his hotel room or elsewhere:

Ruling: His Hajj is **missed entirely**. There is no remedy for this year. He must make **qaḍā'** (repeat the Hajj) the following year. The wuqūf is the farḍ pillar without which the Hajj has no existence.

Bonus Q&A: Days of Uḍḥiyah (Qurbānī) – Three or Four Days?

A student asked about the difference of opinion on the number of slaughtering days.

Ḥanafī Position (Majority): Three Days

The days of slaughtering (Ayyām al-Naḥr) are the **10th, 11th, and 12th of Dhul Ḥijjah** – three days.

Dalīl 1 – Statement of Ibn ʿUmar (raḍiyallāhu ʿanhu)

Ibn ʿUmar explained the āyah of Quran:

وَاذْكُرُوا اللَّهَ فِي أَيَّامٍ مَّعْدُودَاتٍ

“And remember Allah during the counted days.”

Ref: Sūrah al-Baqarah (2:203)

He said: “*Yawm al-Naḥr (the 10th) and two days after it.*” This gives 10, 11, 12 — three days.

Uṣūlī principle: When a Ṣaḥābī does tafsīr of an āyah, and the content is of the kind that **cannot be derived through logic or personal reasoning** (e.g., fixing specific numbers of days), it is treated as though it goes back to the Prophet ﷺ (**marfū‘ ḥukman**). This is because the only source for such information for a Ṣaḥābī would have been the Prophet ﷺ himself.

Dalīl 2 — Ḥadīth of the Prophet ﷺ

“Whoever among you slaughters, let nothing of its meat remain in his house after the morning of the third day.”

This prohibition (which was temporary, for a year of hardship) confirms that the Eid days are **three**: if a fourth day of slaughtering existed, there would still be fresh meat in the house, and the prohibition would not have made sense.

Dalīl 3 — Statements of Other Ṣaḥābah

‘Abdullāh ibn ‘Abbās and ‘Abdullāh ibn Mas‘ūd (radīyallāhu ‘anhum) also stated the same: the days of sacrifice are **yawm al-naḥr and two days after it** (10th, 11th, 12th).

Shāfi‘ī Position: Four Days

Imām al-Shāfi‘ī holds that the slaughtering days extend to the **13th of Dhul Ḥijjah**, making it four days (10th–13th).

Shāfi‘ī Dalīl

A ḥadīth narrated through Abū Sa‘īd and others:

“All the days of Tashrīq are days of slaughtering.”

The days of Tashrīq are the 11th, 12th, and 13th. Combined with the 10th, this gives four days.

Additionally, aḥādīth stating these are “*days of eating, drinking, and enjoyment*” (which is why fasting on the 13th is not permitted) are used to argue that they must also be days of slaughtering.

Ḥanafī Response

The ḥadīth “*all the days of Tashrīq are days of slaughtering*” has a weakness in its chain — it contains a narrator who is considered **ḍa‘īf (weak)**. Some scholars have even declared the ḥadīth **mawḍū‘ (fabricated)**. This is why the majority of scholars did not use it as evidence.

The aḥādīth about “*days of eating and drinking*” are authentic but do **not directly state** that the 13th is a day of slaughtering. Imām al-Shāfi‘ī derived that point through inference (istidlāl), but the wording is not explicit. By contrast, the Ḥanafī evidences are clear and direct.

Summary of the difference:

Ḥanafī (Majority)	Shāfi‘ī
10th, 11th, 12th — three days	10th, 11th, 12th, 13th — four days
Based on clear, authentic narrations from multiple Ṣaḥābah	Based on a ḥadīth with a weak chain, supplemented by indirect inference from authentic aḥādīth

Closing / Next Class

This concludes the discussion on **Wuqūf Arafah**. The next topic — **Ṭawāf al-Ziyārah** (the second rukn of Hajj) — will be covered after a one-week break for the blessed days of Dhul Ḥijjah and Eid al-Aḍḥā. Classes resume on Monday, inshā’Allāh.

Special sessions on Qurbānī masā’il (selection of animal, method of slaughter, and related rulings) will be held over the weekend before Eid, inshā’Allāh.

Masail e Hajj — Class 8 Summary

DATE May 23, 2026

TOPIC Ahkām e Eid al-Adhā & Qurbānī — virtues of the first ten days, Eid sunnah acts, Qurbānī obligation, animals, partnerships, and timing

TEACHER Mufti Umar Aejaaz

Introduction

This special weekend session covers practical rulings of **Eid al-Adhā** and **Qurbānī (Uḍḥiyah)** based on the short kitāb *Ahkām e Eid al-Adhā wa Qurbānī* by the late **Muftī Muḥammad Shafī‘ Uthmānī** (rahimahullāh), former Grand Muftī of Pakistan. The goal is to revise and refresh these masā’il before the blessed days begin.

Faḍā’il: Virtues of the First Ten Days of Dhul Ḥijjah

The first ten days of Dhul Ḥijjah are the **best days of the entire Islamic calendar** (after Ramaḍān). Allah has taken an oath in their name:

وَالْفَجْرِ وَلَيَالٍ عَشْرٍ

“By the dawn, and by the ten nights.”

Ref: Sūrah al-Fajr (89:1–2)

Whenever Allah takes an oath by something, it indicates its immense value.

Key virtues (from aḥādīth as cited in class):

- One fast during these ten days equals the reward of **one year** of fasting.
- The ‘ibādah of one night among these ten nights equals the reward of **Laylat al-Qadr**.
- The **9th of Dhul Ḥijjah** (Yawm al-‘Arafah) is the most special: fasting on it expiates sins of **one year before and one year after**.

Recommended: Not Cutting Nails and Hair

A person who intends to slaughter an animal should **not cut their nails or hair** during these ten days — resembling one in the state of iḥrām. This is a recommended practice (mustaḥabb), not obligatory.

- Trim nails and settle hair **before** the ten days begin.
- If nails or hair become unsightly or cause difficulty (e.g., moustache interfering with eating), they **may be cut** — removing harm takes priority over gaining the benefit of a recommended act.
- For those sending Qurbānī abroad: wait until the slaughter is done there before cutting, to achieve this sunnah fully.

Takbīr al-Tashrīq

It is **wājib** to recite the Takbīr al-Tashrīq after every **farḍ ṣalāh** from the **Fajr of the 9th of Dhul Ḥijjah** to the **‘Aṣr of the 13th of Dhul Ḥijjah** — spanning five days and twenty-three prayers.

- Obligatory on **both men and women**, whether praying with jamā‘ah or alone.
 - **Men** recite it audibly (not excessively loud — just audible).
 - **Women** recite it quietly.
 - It is recited **once** after each farḍ prayer.
-

Sunan of Eid Day

The following acts are mustaḥabb / masnūn on the day of Eid al-Aḍḥā:

1. Waking up early in the morning.
 2. Taking a bath (ghusl).
 3. Using miswāk.
 4. Wearing the **best available** clothing — not necessarily expensive; just the best one has.
 5. Applying perfume (‘itr).
 6. **Not eating before the Eid prayer** — the first thing to eat should be the uḍḥiyah meat (the meat from one’s sacrifice). This is the “hospitality from Allah’s side.” Recommended, not obligatory.
 7. Reciting takbīr (*Allāhu Akbar*) while walking to the muṣallā — in a moderate voice.
-

Eid Prayer — Key Rulings

The Eid prayer is **wājib**. It has a specific methodology with **six additional takbīrāt**:

- **First rak‘ah**: Three extra takbīrāt **before** the qirā‘ah.
- **Second rak‘ah**: Three extra takbīrāt **after** the qirā‘ah.
- In each takbīr, raise the hands and let them drop — **except** the third takbīr of the first rak‘ah, because qirā‘ah follows it (hands remain folded).

Easy rule: 3 before (first rak‘ah), 3 after (second rak‘ah). Raise and drop each time, except the one before qirā‘ah.

If the Imām misses the takbīrāt: No sajdah sahw is performed. Reason: large gathering — sajdah sahw could create confusion and fitnah among people who lack detailed knowledge.

Khuṭbah after Eid prayer: It is masnūn to listen. One should not leave or get engaged in other activities.

Qurbānī (Uḍḥiyah) — Status and Virtues

Qurbānī is one of the greatest acts of ‘ibādah during these days. It is a remembrance of the **Sunnah of Ibrāhīm** (‘alayhi al-salām), who was commanded to sacrifice his son in a dream and proceeded to obey.

Virtues (from aḥādīth as cited in class):

- In exchange of every **hair** of the animal, there is one reward. If the animal has wool, every strand carries a reward.
- The person is **forgiven** before the first drop of blood falls on the ground — provided the intention is sincere.

Ruling — Wājib or Sunnah?

Scholar	Ruling
Imām Abū Ḥanīfah (preferred Ḥanafī opinion)	Wājib — based on the Prophet ﷺ's warning: <i>"Whoever has the capability but did not slaughter, let him not come near our muṣallā."</i> Such a severe warning is only issued for missing a wājib.
Ṣāhibayn, Imām al-Shāfi'ī, Imām Mālik, Imām Aḥmad	Sunnah Mu'akkadah — strongly emphasized sunnah, but not wājib.

Upon Whom is Qurbānī Obligatory?

Basic Criteria

The person must be: (1) **Muslim**, (2) **Āqil** (sane), (3) **Bāligh** (mature).

Specific Criteria for Qurbānī

In addition: (4) **Muqīm** (resident, not a musāfir), and (5) **Ṣāhib al-Niṣāb** — owner of niṣāb amount beyond basic needs (**ḥājāt aṣliyyah**).

The niṣāb is the value of **612+ grams of silver** (the lower of the two thresholds of gold and silver).

Two Key Differences from Zakāt Niṣāb

Point	Zakāt	Qurbānī / Ṣadaqat al-Fiṭr
Ḥawl (year)	Required — niṣāb must be held for one full year	Not required — even acquiring niṣāb on the last day of Eid before sunset makes Qurbānī wājib
Exemptions	Broader — e.g., a backup car (not for trade) is not counted	Narrower — backup car, extra house not in use, etc. are counted toward niṣāb

Women and Qurbānī

Qurbānī is **individually obligatory** upon women who meet the niṣāb, even if their only asset is jewelry.

- If she has **only gold** (no other assets): the niṣāb of **gold** must be completed.
- If she has a **mixture** (gold + cash, gold + silver, etc.): the niṣāb of **silver** (the lower threshold) is used.

Practical advice: Women should plan for Qurbānī throughout the year (e.g., saving a small daily amount), rather than scrambling on Eid day. The husband commonly takes this burden, which is permissible — but it must be done **with the wife's knowledge**.

One Qurbānī per Person, Not per Family

A common misconception: one Qurbānī suffices for the whole family. This is **incorrect** in the Ḥanafī school. Every individual who meets all the criteria must have their own Qurbānī.

Debt and Niṣāb

Debt is deducted from total assets. For **long-term loans** (home loans, etc.), only the **yearly installment due** is deducted — not the entire loan amount.

No Qurbānī on Minors or Insane Persons

There is no Qurbānī obligation on an immature child or a majnūn, regardless of their wealth. However, it is **recommended** for a wealthy father to perform Qurbānī on behalf of his immature children.

Poor Person Who Buys an Animal

If a poor person purchases an animal **with the intention of Qurbānī**, the Qurbānī becomes **wājib** upon him on account of that purchase.

Days and Timing of Qurbānī

Three Days

The days of slaughtering are the **10th, 11th, and 12th of Dhul Ḥijjah**. The first day is the best.

- Slaughtering at **night** is **makrūh**.
- Time technically begins after **Fajr** on the 10th (Shar'ī daytime begins at Fajr, not sunrise).

In Cities (Where Eid Prayer is Performed)

Slaughtering **must be done after the Eid prayer**. If done before, the Qurbānī is **not valid** and must be repeated (the meat is still ḥalāl, but the wājib is not fulfilled).

If there are multiple masjids: once the **first masjid** in the city completes its Eid prayer, slaughtering is permissible for the entire city.

In Small Villages (No Eid Prayer)

Slaughtering may be done immediately **after Fajr**.

Practical shortcut: A person in the city can send his animal to a nearby village (where no Eid prayer is performed) to be slaughtered after Fajr, then have the meat brought back. The **place of the animal** determines the ruling.

Sending Qurbānī Abroad

When Qurbānī is sent to another country, it must be performed on a **common Eid day** — a day that is a valid Eid day in **both** the animal's location and the person's location.

- If Eid in the US is Wednesday and in India is Thursday, the Qurbānī in India must be done on **Thursday**.
- It should not be done on a day that would be the 13th in the person's location (as that exceeds the valid days).

Charity Cannot Replace Qurbānī

No amount of ṣadaqah can replace Qurbānī. 'Ibādāt are fixed by Allah's command, not by human logic.

Animals for Qurbānī

Category	Animals	Shares
Small animals	Goat, sheep, ram, lamb	1 share (1 animal = 1 person)
Cattle	Cow, buffalo, ox	Up to 7 shares
Camel	Camel	Up to 7 shares

- Only **domesticated livestock** of the above types are valid. Wild animals — even if kept as pets — are not valid.
- The validity of buffalo for Qurbānī is established in Ḥanafī fiqh (objections by some groups were addressed by Mawlānā Yūsuf Ludhyānwī).

Partnerships in Larger Animals — Critical Rulings

All Partners Must Intend 'Ibādah

Every partner's share must be for an act of 'ibādah — whether Qurbānī, Walimah, 'Aqīqah, or similar. If even **one partner** has no 'ibādah intention, the Qurbānī of **all partners** is invalidated.

The Ḥarām Income Problem

If one partner's income is **majority ḥarām** and he pays his share from ḥarām earnings, the Qurbānī is **invalid for all partners**.

Rules for assessment:

- If there is **no evidence** against a partner, the default assumption is **ḥalāl** — benefit of the doubt applies.
- Assessment is based on **ẓāhir** (apparent situation).
- You are not required to investigate deeply, but you **must not knowingly** partner with someone whose majority income is ḥarām.
- For **mixed income** (e.g., gas station selling both ḥalāl and ḥarām items): the **majority** of income is assessed.

When using Qurbānī services where partners are assigned by the organization: benefit of the doubt applies as long as you have no specific evidence of a problem.

Closing / Next Class

The remaining masā'il of Qurbānī (method of slaughter, distribution of meat, skins, and other details) will be covered in the next session. After that, classes break for one week for the blessed days of Eid. Regular Masā'il al-Ḥajj classes resume the following Monday, inshā'Allāh.

— • —

Mishkāt al-Maṣābīḥ — Kitāb al-Nikāḥ, Class 1

DATE May 24, 2026

TOPIC Qualities of a good wife, marriage as half of Īmān, simplicity in Nikāḥ, and looking at the prospective spouse

TEACHER Mufti Umar Aejaaz

Introduction

This class covers selected aḥādīth from **Mishkāt al-Maṣābīḥ**, Kitāb al-Nikāḥ (Book of Marriage). The discussion includes the qualities of a righteous wife, the spiritual significance of marriage in Islam, the principle of simplicity in nikāḥ, and the permissibility of looking at a prospective spouse before proposing.

Ḥadīth 1: Four Qualities of a Good Wife

A good wife is summarized in four qualities:

1. **Muṭī‘ah** (obedient) — she is obedient to her husband in matters that do not contradict the Sharī‘ah.
2. **Pleasing to look at** — when her husband looks at her, she is pleasing to him. This encompasses both outward beauty (physical appearance) and inner beauty (beauty of character).
3. **Obeys his instructions** — when her husband directs her regarding household or other permissible matters, she complies.
4. **Protects her chastity in his absence** — she guards herself, her honor, and his household when he is not present.

The Path to Jannah for a Woman

If a woman fulfills her obligations towards Allah (prays five times, etc.) and lives such a life that her husband is pleased with her, then according to the ḥadīth, **all eight doors of Jannah are opened for her**, and she may enter through whichever door she wishes.

Shaykh’s commentary: For a woman, entry into Jannah requires two things — pleasing Allah and pleasing her husband. For a man, the path involves additional responsibilities: earning a livelihood, da‘wah, amr bil ma‘rūf wa nahy ‘an al-munkar, jihād, and striving outside the home.

Note on Physical Beauty

Islam does not sideline the dimension of physical beauty. It is important for a healthy marriage. A woman may attend to her appearance **with the right intention** (for the sake of her husband), and it becomes rewarding for her.

Ḥadīth 2: Marriage is Half of Dīn

“When a servant marries, he has completed half of his religion. Now let him fear Allah in the remaining half.”

Why is Nikāḥ “Half of Īmān”?

A person has two categories of obligations:

1. **Ḥuqūq Allāh** (rights of Allah) — worship, ṣalāh, ṣawm, etc.
2. **Ḥuqūq al-‘Ibād** (rights of people) — responsibilities towards others.

The relationship of nikāḥ is the most delicate and sensitive of all human relationships. The Prophet ﷺ said:

“The best of you are those who are best towards their wives.”

If a person fulfills the rights of the marital relationship properly, it is expected that their other relationships will also be healthy. Thus, nikāḥ effectively represents the **ḥuqūq al-‘ibād** half of dīn.

Before marriage: No matter how righteous a person is, they are fulfilling at best 50% of their dīn.

After marriage: The other half becomes available. Even the reward of ṣalāh increases — it is mentioned that ṣalāh is multiplied by **27 times** once a person is married.

Comparison with Other Religious Traditions

Tradition	Women’s Spirituality	View on Marriage
Islam	Complete parity — a woman can be a waliyyah of Allah. Equal access to Jannat al-Firdaws.	Marriage is required to complete Īmān. A spiritual asset, not a hindrance.
Catholicism	Only men can attain highest spiritual ranks (pope, bishop, cardinal).	Celibacy required for highest spirituality. Women seen as obstacles.
Hinduism	Only men can attain highest spiritual rank (yogi, Brahman).	Marriage is a hindrance to spiritual development.
Buddhism	Nirvāṇa reserved for men. Women cannot attain it.	Even accidental touch of a woman “defiles” a man spiritually.

Key point: Islam gives complete religious equality to men and women in both **dunyawī spirituality** (closeness to Allah) and **ukhrawī spirituality** (access to Jannat al-Firdaws). And unlike other traditions, marriage is not a hindrance but a **requirement** for completing one’s faith.

Ḥadīth 3: The Greatest Barakah in Nikāḥ is Simplicity

“The greatest of nikāḥ in terms of blessings is that nikāḥ where the burden is the least.”

Teaching: Keep Nikāḥ Simple

- The **mahr** should be such that the man can easily give it.
- The **functions** should not be a burden for either family.
- If Allah has given wealth and spending generously is easy and not burdensome, that is fine — the teaching is contextual.

- **Warning:** When nikāḥ becomes burdensome, the barakah is lost, and the effects show in the marital life itself.

Q&A: Should We Invite Everyone?

Q: If we invite more guests, will there be more barakah?

A (Teacher): The Ṣaḥābah were so simple that they would sometimes get married and the Prophet ﷺ would only find out later. He would then make du‘ā’ for them. There was no takaluf (formality). Whoever was available was enough. It can be a small family affair. The more ease and simplicity, the more barakah.

Q&A: Children’s Desires for Grand Weddings

Q: Children see grand weddings among peers and want the same. How do we address this?

A (Teacher): One must gently explain the teachings of the Sunnah — that simplicity brings the greatest barakah. This requires long-term tarbiyah: raising children with love for the Prophet ﷺ and his teachings, so they are willing to sacrifice customs and trends. The model is the Prophet ﷺ, not the culture around us.

Ḥadīth 4: Looking at the Prospective Spouse

Ruling

According to the Ḥanafī school and the majority of ‘ulamā’, it is **permissible** — in fact, **mustaḥabb (recommended)** — for a man to look at the woman he intends to propose to.

The Ḥadīth

A man came to the Prophet ﷺ and said he intended to marry an Anṣārī woman. The Prophet ﷺ said: *“Go and look at her, for there is something in the eyes of some of the Anṣār.”*

The Prophet ﷺ recommended looking because there may be a physical characteristic that could later become a source of discomfort.

Practical Process

The looking should not be the first step. The recommended sequence:

1. **Initial inquiry:** Send a female relative (mother, sister) to gather information — compatibility, character, background.
2. **Assessment:** If everything looks good,
3. **Physical meeting:** The man can then meet and look at the prospective bride.

What May Be Seen

- The **face** and **hands** only.
- She does not need to wear niqāb during this meeting.
- Other parts must remain concealed.
- She may also look at him.

Additional Points

- **Photographs:** Sharing pictures beforehand is also permissible.

- **Even if decided:** The teacher's shaykh advised that even if you have already decided, still meet in person — to practice the sunnah and earn the reward.
 - **Right to say no:** It is better to decline upfront than to proceed and have an unhappy marriage.
-

Ḥadīth 5: A Woman Must Not Describe Another Woman to Her Husband

“A woman must not touch the body of another woman [without garment in between], and she must not describe another woman to her husband, such that it is as if he were looking at her.”

A woman should be careful **not to describe another woman's physical appearance** to her husband, because:

- It could put waswasah (sinful thoughts) in the husband's mind.
 - She would be held responsible and sinful for doing so.
-

Closing

The class covered the opening aḥādīth of Kitāb al-Nikāḥ in Mishkāṭ al-Maṣābīḥ. Further aḥādīth on the etiquettes and rulings of marriage will continue in the next session, inshā' Allāh.

Masail e Qurbānī — Class 2 Summary

DATE May 24, 2026

TOPIC Qurbānī (continued) — sharing animals, age requirements, defects, method of slaughter, meat distribution & skin rulings

TEACHER Mufti Umar Aejaaz

Introduction

This class completes the study of **Qurbānī masā'il** from the kitāb *Aḥkām e Eid al-Aḍḥā wa Qurbānī* by Muftī Muḥammad Shafī' ʿUthmānī (rahimahullāh). Topics covered include sharing larger animals, age requirements, disqualifying defects, the masnūn method of slaughter, and rulings on meat distribution and animal skins.

Sharing a Larger Animal — Intention at Time of Purchase

Best Practice

A person purchasing a large animal (cow, buffalo, camel) should make the intention to share it with others **before purchasing**. This is the best and clearest option.

Purchasing Alone, Then Wanting to Share Later

Person	Ruling
Ghanī (rich / ṣāḥib al-niṣāb)	He may share it with others later. Since Qurbānī is wājib on his person (not the animal), one share in the animal suffices for his obligation.
Faqīr (poor / not ṣāḥib al-niṣāb)	He should not share it, because when he purchased the whole animal with the niyyah of Qurbānī, the obligation attached to the entire animal . However, some scholars permitted it even for a faqīr, though it would be makrūh — because it resembles rujūʿ (going back on a commitment in ʿibādah).

Advice: Decide before purchasing whether to keep the animal alone or share it.

Age Requirements for Animals

Animal	Minimum Age
Goat (bakrā / bakrī)	1 full year (Islamic calendar)
Ram / lamb (dumbā)	6 months — but only if it looks as healthy as a one-year-old. This exception applies only to sheep and ram.
Cow / buffalo	2 years
Camel	5 years

Important: Age is determined by **days and years**, not by teeth. Teeth can give an idea but are not the Sharʿī criterion. If the seller states the animal is of the required age and there is no solid evidence to reject his claim, relying on his statement is permissible.

Mixed Intentions Among Partners

Different partners in a shared animal may have different ʿibādah intentions — one for Qurbānī, another for ʿAqīqah, a third for Walimah, and so on. This is **valid**, as long as every partner has a **niyyah of ʿibādah** (a religious purpose involving slaughter). The specific type of ʿibādah may differ.

Castrated Animal (Khāṣī)

A castrated goat or other animal is **not defective** for Qurbānī purposes. In fact, it is **afḍal** (better) — the Prophet ﷺ himself slaughtered castrated animals. Castration makes the animal healthier, fattier, and the meat better.

Goat Alone vs. One Share in a Larger Animal

Which is better depends on the situation. In general, looking at current custom, a **goat alone** is often considered more virtuous because it is typically more expensive and the meat quality is better. But this varies by context.

Disqualifying Defects (ʿUyūb) — Three Core Principles

The animal for Qurbānī should be as healthy and fatty as possible. The Prophet ﷺ said: *“Make your animals for slaughtering samīn (fatty, healthy).”*

Three principles determine whether a defect disqualifies an animal:

1. A **useful body part** is missing completely, or **one-third or more** of it is gone — one-third is considered **kathīr** (significant) in Sharīʿah.
 2. Any defect that makes the animal **defective in the eyes of traders** (tujjār), reducing its market value.
 3. Any defect that causes **damage to the meat** itself.
-

Applying the Principles – Specific Cases

Defect	Useful Part?	Eligible?
No horns (by birth)	Horn is not a functionally useful part	Yes – eligible
Horn broken / uprooted affecting blood (dimāgh)	Becomes a health defect	No – not eligible
Blind in one or both eyes (or one-third of eyesight lost)	Eye is a useful part	No – not eligible
Severely lame (cannot walk to slaughter site)	Leg is a useful part	No – not eligible
Slightly lame (can still walk easily)	Minor defect	Yes – eligible
Too weak to walk (from illness)	Major health defect	No – not eligible
Tail missing or one-third cut	Tail is a useful part (removes flies, etc.)	No – not eligible
Ear missing or one-third cut	Ear is a useful part	No – not eligible
Ear split but still attached	Ear is intact, just has a cut	Yes – eligible
Ear missing from birth	Missing a useful part regardless of cause	No – not eligible
Majority of teeth missing (cannot chew properly)	Teeth are useful	No – not eligible
Some teeth missing (can still chew)	Minor defect	Yes – eligible
Mild allergy	Bearable, common	Yes – eligible
Severe allergy (bones visible, meat damaged)	Major health defect	No – not eligible
Udder: goat missing one of two	Half of udder gone	No – not eligible
Udder: cow with one of four defective	Only one-fourth affected	Yes – eligible
Udder: cow with two of four defective	Half affected	No – not eligible

Defect Appears After Purchase

Key uṣūl: The wujūb (obligation) of Qurbānī belongs to the **person** of the ghanī, but to the **animal** of the faqīr.

Person	Ruling
Ghanī (rich)	Must purchase a new healthy animal . The obligation is on his person, and he is required to slaughter a healthy one.
Faqīr (poor)	May slaughter the same defective animal . The obligation is on the animal, not on him personally. Sharī'ah does not force him to buy another.

Lost Animal Scenarios

Ghanī Loses the Animal

1. He must purchase another animal (obligation is on his person).
2. If the first animal returns, he only needs to slaughter **one** — his choice which one.
3. If the second animal is of **lesser value** than the first, he must give the difference in charity.

Faqīr Loses the Animal

1. Sharī'ah does not require him to purchase another (obligation was on the animal).
 2. If he **does** purchase another with niyyah of Qurbānī, that second animal also becomes wājib.
 3. If the first animal returns, he must slaughter **both** — because each animal independently carries the obligation.
 4. If the animal returns **after Eid days**, it cannot be slaughtered for Qurbānī. It (or its price) must be given in charity.
-

Masnūn Method of Slaughter

Who Should Slaughter

- The owner should slaughter **by his own hands** if capable.
- If not, another expert may slaughter on his behalf, but the owner should **be present**.
- If both the owner and an expert hold the knife together, **both** must say Bismillāh. If either omits it **intentionally**, the animal is not ḥalāl. Forgetting is excusable; **not knowing the ruling is not** — it is treated as intentional omission.

What to Say

Any name of Allah suffices (e.g., *Allāhu Akbar*), said with the **intention of Qurbānī**. The masnūn practice:

1. Before slaughtering:

إِنِّي وَجَّهْتُ وَجْهِيَ لِلَّذِي فَطَرَ السَّمَاوَاتِ وَالْأَرْضَ حَنِيفًا وَمَا أَنَا مِنَ الْمُشْرِكِينَ

“I have turned my face towards the One who created the heavens and the earth, as a ḥanīf, and I am not of the mushrikīn.”

Ref: Sūrah al-An‘ām (6:79)

1. **At the time of slaughter:** *Bismillāhi Allāhu Akbar*.
2. **After slaughter:** *Allāhumma taqabbal minnī* (or *min fulān* if on behalf of someone else).

Ādāb (Etiquettes) of Slaughter

- Place the animal **facing the qiblah**.
- Keep the animal in your custody for a period before slaughter (**afḍal**).
- Do not extract milk or use the animal for personal benefit after dedicating it. If any benefit is gained, give that amount in charity.
- **Sharpen the knife properly** — but not in front of the animal.
- Do **not slaughter one animal in front of another**.
- Do not **drag the animal by its legs** to the slaughter site.

- Do not rush to remove the skin — **wait until the animal has fully cooled**. Removing skin while the animal still feels pain is impermissible.
-

Baby Born from the Qurbānī Animal

If the animal gives birth before or at the time of slaughter:

- If the baby is large enough to yield meat: it **must be slaughtered** as well — it is part of the dedicated animal.
 - If the baby is too small (no benefit from slaughtering): it may be **kept and slaughtered next year**, or its **price given in charity**. Either way, it counts as part of **this Qurbānī** (not a new one).
-

One Partner Passes Away

If one of seven partners in a cow passes away before slaughter, the **permission of all his warathah** (heirs) is required before proceeding. If the animal is slaughtered without their consent, the Qurbānī is **invalid for all partners** — not just for the deceased's share.

Distribution of Meat

General Rule

The entire meat may be used personally. However, the **mustahabb** division is into three parts:

1. One-third for **yourself and family**.
2. One-third for **friends and relatives**.
3. One-third for **poor people**.

Dividing Meat Among Partners (Ribā Concern)

When partners divide meat from a shared animal, it is technically an **exchange (mubādalāh)** of meat for meat. Since meat exchanged for meat of the same genus requires **strict equality**, random division could involve ribā.

Solution: Add **non-meat parts** (liver, heart, head, skin, trotters) to each share. This creates a mixture of meat and non-meat, and the strict equality requirement is relaxed. Random (approximate) division then becomes permissible.

Commercial Use is Prohibited

No part of the Qurbānī animal (meat, skin, or otherwise) may be used for **commercial purposes**:

- Cannot sell the meat.
 - Cannot pay the butcher's wages from the meat or skin.
 - Cannot give the skin to anyone in exchange for services.
-

Rulings on the Skin

- The skin may be used for **personal use**.
 - If sold, the proceeds must be used to purchase something **sustainable / non-consumable** (e.g., household vessels) — not food.
 - The skin may be given in **charity** to the needy (most common practice). All partners must consent.
 - It may be given to a **madrasah where needy students reside** (and must be spent on those students).
 - It **cannot** be given to a masjid, or used for construction of masjid or madrasah buildings.
-

Miscellaneous Rulings

Substituting Qurbānī with Other Animals

Some people who are not eligible for Qurbānī slaughter a chicken or other small animal “to join in the spirit.” This has **no basis in Islam** and is considered manipulation of the aḥkām of Sharī‘ah. It is the way of ignorant people and should be avoided.

Closing

This concludes the study of **Qurbānī masā’il** from the kitāb of Muftī Muḥammad Shafi‘ ʿUthmānī. Classes now break for **one week** for the blessed days of Eid al-Aḍḥā. Regular Masā’il al-Ḥajj classes resume the following Monday, inshā’ Allāh.

Index of Topics

Major sections in this edition

How to use this book	3
Principal reference	3
Method	3
Overview	1
The Four Conditions	1
Follow-Up Cases: What If a Condition Is Gained Mid-Hajj?	2
Q&A at the End: Why Is Ramadan Fasting Different?	3
Closing	3
Background	4
Two scholarly opinions	4
The Hadith argument (Zaad and Rahila)	4
Two cases of blindness — detailed ruling	5
Question raised by a student	5
Next class	5
Introduction	6
Two Key Terms	6
Central Question: Is Ownership Required?	6
Opinions of the Four Imams	6
What Happens if Someone Gifts You a Hajj Ticket?	7
How Much Does One Need? — The Criteria of Zad & Rahila	7
How Long Must Family Expenses Be Arranged?	8
Special Cases Discussed	8
Conclusion of This Section	9
Introduction	10
Part 1 — Amn al-Tariq (Safety of Travel)	10
Part 2 — Conditions Specific to Women	12
Part 2A — Mahram: Hanafi vs Imam Shafi'i	12
Part 2B — Mahram Must Be Ready and Financially Covered	14
Part 2C — Husband's Permission	15
Part 2D — What Counts as Mahram?	15
Part 2E — Second Condition (Preview)	16
Q&A from Class	16
Summary Table — When Is Hajj Farz on a Woman? (Hanafi)	17
Closing	17
Key Arabic Terms (Quick Reference)	18
Introduction	19
Second Condition Specific to Women: Absence of 'Iddah	19
Scenarios: Talaq or Husband's Death During the Hajj Journey	19

Hajj Badal (حَجُّ بَدَل) – Proxy Hajj	21
Financial Capability and the Hajj Season	22
Q&A from Students	23
Closing / Next Class	23
Introduction	25
Point 1 – The Dalil (Evidence) for the Farḍiyyah of Wuqūf Arafah	25
Point 2 – The Place of Wuqūf	26
Point 3 – The Time of Wuqūf	26
Point 4 – Case of Mistaken Dates	28
Closing / Next Class	29
Introduction	30
Continuation – Mistaken Dates: The Analogy of Qiblah	30
Witness Testimony – Detailed Scenarios	30
Point 5 – Duration of Stay at Arafah	32
Excursus: Classification of Ḥadīth (Uṣūlī vs. Muḥaddithīn)	32
Point 6 – Departing Arafah Before Sunset (Ghurūb)	33
Missing the Wuqūf Entirely	34
Bonus Q&A: Days of Uḍḥiyah (Qurbānī) – Three or Four Days?	34
Closing / Next Class	36
Introduction	37
Faḍā'il: Virtues of the First Ten Days of Dhul Ḥijjah	37
Takbīr al-Tashrīq	38
Sunan of Eid Day	38
Eid Prayer – Key Rulings	38
Qurbānī (Uḍḥiyah) – Status and Virtues	38
Upon Whom is Qurbānī Obligatory?	39
Days and Timing of Qurbānī	40
Sending Qurbānī Abroad	41
Charity Cannot Replace Qurbānī	41
Animals for Qurbānī	41
Partnerships in Larger Animals – Critical Rulings	41
Closing / Next Class	42
Introduction	43
Ḥadīth 1: Four Qualities of a Good Wife	43
Ḥadīth 2: Marriage is Half of Dīn	43
Ḥadīth 3: The Greatest Barakah in Nikāḥ is Simplicity	44
Ḥadīth 4: Looking at the Prospective Spouse	45
Ḥadīth 5: A Woman Must Not Describe Another Woman to Her Husband	46
Closing	46
Introduction	47
Sharing a Larger Animal – Intention at Time of Purchase	47
Age Requirements for Animals	47
Mixed Intentions Among Partners	48
Castrated Animal (Khāṣī)	48
Goat Alone vs. One Share in a Larger Animal	48
Disqualifying Defects ('Uyūb) – Three Core Principles	48
Defect Appears After Purchase	49
Lost Animal Scenarios	50
Masnūn Method of Slaughter	50

Baby Born from the Qurbānī Animal	51
One Partner Passes Away	51
Distribution of Meat	51
Commercial Use is Prohibited	51
Rulings on the Skin	52
Miscellaneous Rulings	52
Closing	52

End of edition · Further sessions forthcoming
Darul Uloom Wal Funoon · Mufti Umar Aejaaz